

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

v.

Docket No. 18-10

KIRSHA, B.V.,

Leendert Hohannes BERGWERFF a/k/a Hans BERGWERFF,

LINDA SIEVAL,

Respondents.

**OPPOSITION TO MOTION TO AMEND COMPLAINT
AND STATEMENT OF IMPACT OF PROPOSED AMENDMENT ON RESPONDENTS'
MOTION TO DISMISS**

By Order served February 12, 2019, Administrative Law Judge Erin M. Wirth ordered Complainant to file a supplement to the motion to amend by February 20, 2019. The supplement was to include the proposed amended complaint and a memorandum of law supporting the motion to amend so that Respondents would have an opportunity to oppose such amendment. Administrative Law Judge Wirth further ordered that Complainant's second motion to extend the time to respond to Respondents' motion to dismiss be granted.

The Order clearly stated that the ruling on the amendment of the complaint would be predicated on Complainant's assertions that it "learned additional information regarding the facts and circumstances surrounding the allegations in the Complaint, such that Complainant believes justice would be best served by way of a verified amendment of the original Complaint." The Order further provided that once the amendment was submitted by Complainant, Respondents would have an opportunity to oppose the amendment by March 7, 2019. Your Honor further relied on assertions by Complainant that "litigating the Motion to Dismiss at this juncture in time would not be in the interests of the parties or of judicial economy." Additionally, the Administrative Law Judge ordered Respondents in their opposition to the motion to amend to address the impact, if any, the proposed amendment would have on

their motion to dismiss.

Respondents oppose Complainant's Motion to Amend Complaint on the grounds that Complainant has placed misleading information in the record upon which the Administrative Law Judge has relied in delaying a response to Respondents' Motion to Dismiss. As will be discussed below, there is clearly no additional information regarding the facts of this matter, nor the circumstances surrounding the allegations in the Complaint which would justify an amendment, nor the loss of time in responding to Respondents' Motion to Dismiss. The so-called "just discovered" information, as will be demonstrated in the discussion below, has: a) additional alleged facts which, if taken as true for purposes of this proceeding, relate to allegations of activities not under the jurisdiction of the Shipping Act of 1998, as amended (The Shipping Act"); and b) the stand alone and supporting allegations that Respondents are common carriers are clearly unacceptable conclusory facts as addressed in *Twombly*. *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007) ("*Twombly*").

As submitted in the Respondents' previous motion to Your Honor, Complainant's Motion to Amend must be denied because Complainant again fails to allege a Shipping Act violation, and furthermore, again fails to allege facts which would support a finding that Respondents are subject to the jurisdiction of the Federal Maritime Commission. Complainant's futile amendments should not be allowed. They are clearly only intended to delay the proceeding and to continue vexatious litigation to harass Respondents who are already defending these non-Shipping Act factual allegations in proceedings in the Netherlands. (See Exhibit I hereto, pages 2, 3, highlighted material, Exhibit 6 to the Verified Amended Complaint).

I. Additional Facts Proposed in Amendments, If Taken as True, Are not Activities over Which the Federal Maritime Commission Has Subject Matter Jurisdiction nor Does Complainant Provide any "Just Discovered Information" Which Support as Plausible Personal Jurisdiction Over Respondents.

As set forth in Respondent's previous submission, Complainant fails to allege activities subject to the subject-matter jurisdiction of the Federal Maritime Commission. *Twombly* requires courts to accept as true all well-pleaded factual allegations in the complaint, but courts need not accept conclusory facts or the truthfulness of legal conclusions. Complainant's amended allegations regarding Respondent's alleged status as a common carrier are legal conclusions, and will be addressed in section II below. As to Complainant's remaining amended allegations, *Twombly* requires courts to determine whether complainants state a plausible claim

for relief. As previously provided in Respondents' Motion to Dismiss, the additional facts alleged in Complainant's Amended Complaint further continue to establish that there is a dispute between Logfret, Inc. and Respondents, but the dispute clearly is not based on violations of the Shipping Act. As such, the Commission lacks subject-matter jurisdiction to deal with these issues.

The Amended Complaint pleads the following "just discovered information" allegations, none of which reach levels as advertised as either "just discovered", nor, more importantly, as "additional" facts or information which would provide any more meat to the bone to support either subject matter jurisdiction or personal jurisdiction over Respondents:

1) **Paragraph 25** of the amended Complaint, is a rehash of facts alleged in the original Complaint involving averments that Bergwerff, Ms. Sieval, and Kirsha B.V. committed numerous unethical and illegal activities with respect to the management and governance of Logfret B.V., citing a new February 20, 2019, Declaration of Jean Francois Millet, and minutes to meetings, and expense invoices with respect to those meetings, as support for these allegations. This new averment and supporting declaration from Mr. Millet, and other attachments are repetitive allegations from the original Complaint, and if taken as true pursuant for purposes of this motion only, do not allege facts which would support either subject matter jurisdiction or personal jurisdiction over Respondents.

2) **Paragraph 26** is equally deficient in that it merely states in a blatant conclusory manner, without any factual support, that Respondents committed many illegal non-described acts which resulted in a number of uncited violations of the Shipping Act, as amended.

3) **Paragraphs 27 through 31** take a curious strained turn which deserves special attention and will be discussed separately in Section II below in more detail since Complainant has placed such substantial trust that the issuance of a normal Logfret bill of lading by Respondents (Logfret, B.V.) is the silver bullet which will provide to the Commission subject matter and personal jurisdiction over this matter. The long and the short of it is that this "just discovered information" is purportedly an unfamiliar bill of lading issued by Respondents, which somehow attributes "de facto" carrier status to Respondents. But in reality, the bill of lading touted as having magical qualities, is the normal Logfret bill of lading. We will discuss this below in Section II in more detail how this allegation is another inane attempt to keep this harassment charade on-going. This would be risible were it not for the harassment and expense to which Respondents are being exposed, and the wasteful and abusive utilization of Commission resources. In paragraph 31, the allegation is that "Mr. Bergwerff and Ms. Sieval

traveled to Montreal, Canada, to meet with executives at Delmar International Inc. to discuss the ongoing business relationship between Logfret B.V., Delmar International Inc. and the branch offices of its subsidiary, Delmar USA.” This seems to be one of the central disputes in the Complaint and Amended Verified Complaint---i.e., that employees and managers of Logfret B.V. engaged a non-Logfret entity as destination handling agent in a certain region of the United States. This, again, underscores the fact that the disputes are of the non-Shipping Act variety, but express rather an internal disagreement among Logfret entities, employees, and former management of Logfret, B.V.

4) **Paragraphs 32 through 34** is again a rehash of the Complaint as to how Respondents unlawfully routed inbound shipments away from Logfret by naming Delmar USA, a competing common carrier and NVOCC as destination agent. It is appropriate for Respondents to again repeat language from Respondents’ Memorandum in Support of Motion to Dismiss, at page 14, which is still applicable to the Amended Complaint, since the amendment does not change the underlying issues:

The long and the short of the above discussion is that [still] none of the allegations [plausibly] plead that Respondents acted as common carriers with respect to the alleged dissemination of the pertinent information comprising a violation of 46 U.S.C. § 41103(a). Clearly, Logfret, Inc., the only common carrier [still] mentioned in the activities described in the pleadings, would not file a Complaint against itself. The dispute among the parties is obviously elsewhere.

As will be underscored in the discussion below in Section II, there are no “new additional facts just discovered” which change anything. The allegations included in the Verified Amended Complaint that Respondents acted as common carriers are bare conclusory allegations which are clearly not acceptable under *Twombly*, and the averments that Respondents, acting as common carriers, were acting as common carriers and issuing other than Logfret bills of lading will be demonstrated in Section II as an absurd averment.

5) **Paragraphs 35 through 39** again underscore that the disputes involve disagreements with regard to Logfret, B.V.’s management to utilize Logfret, Inc. in the United States as a handling agent for certain shipments from the Netherlands to the United States. In Paragraph 35, Complainant alleges, “that Mr. Bergwerff had directed employees of Logfret B.V. to enter into transportation arrangements with competitors of the Logfret Group’s companies and affiliates” and refers to a letter in Ex. 6 of the Verified Amended Complaint from Logistique Holding SAS,

Logfret, Inc.'s parent. The letter was directed to Logfret B.V. and Kirsha B.V. requesting that they cease this activity and admonishes that Mr. Bergwerff cease stating to Logfret, B.V. employees that Logistique Holding is attempting to have Mr. Bergwerff resign as Director of Logfret, B.V. At paragraph 38, Complainant again alleges that Respondents "continued to make improper and fraudulent use of a 'Logfret Cargo Lines' bill of lading to provide transportation of cargo from The Netherlands to the United States." Even in the amended Complaint, Complainant still characterizes a misuse of the Logfret, Inc. bill of lading, which again demonstrates an internal dispute with the management of Logfret, B.V. These allegations are contrary to their new found allegations that Respondents are holding out as "de facto" common carriers, separately and distinctly from their roles under Logfret, B.V. Again, there are no "new just discovered additional facts" which change anything which was not previously discussed in Respondents' Memorandum in Support of Motion to Dismiss. Again, there are no new allegations that Respondents acted as common carriers, "de facto", or otherwise, which meets the requirements of 46 U.S.C. § 41103(a). Exhibit 6 of the Verified Amended Complaint actually describes the real disputes with Respondents pretty well, and refers to on-going litigation in the Netherlands with regard to the management/business issues which are the true disputes in this proceeding. Additionally, Paragraph 38 underscores Logfret's allegation that "Mr. Bergwerff, Ms. Sieval, and Kirsha B.V. continued to make improper and fraudulent use of a "Logfret Cargo Lines" bill of lading." This provision in Paragraph 38 clearly indicates that there is a dispute on the use of Logfret's bill of lading, and not that Respondents (either collectively or individually) were somehow magically issuing their own bills of lading or holding out as common carriers. This is clearly a management/employee dispute. There has never been any allegation in this proceeding by Complainant that somehow the shipment which designated Delmar as destination agent was handled outside the Logfret system. In fact, Complainant has never made that allegation, nor can it.

None of this supports either violations of the Shipping Act or facts which support a plausible conclusion that Respondents are subject to the jurisdiction of the Commission. Complainant has not pinpointed any unusual, unlawful, or, most importantly, relevant facts sufficient to bring its claims within the subject-matter jurisdiction of the Federal Maritime Commission, or to bring Respondents subject to the personal jurisdiction of the Commission. It is clear that Complainant's amended claims do not fall within the realm of a Shipping Act Violation, but rather relate to and underscore employment and/or management disputes relating

to the management of Logfret B.V. as did their original Complaint.

Other than allegations of unlawful activity regarding Respondents' routine use of the "Logfret Cargo Line" bill of lading, Complainant's Amended Complaint does not contain any new factual allegations that would give rise to a claim for relief. In fact, the routine usage of the Logfret Cargo Line bill of lading by Respondents as employees and managers of Logfret, B.V. are neither new facts, nor old facts recently discovered.

As will be discussed below, the allegations relating to the use of the "Logfret Cargo Line" bill of ladings by Respondents as imposing de facto common carrier status is disingenuous, at best. Or at worst, they are deliberate misrepresentations intended to prolong this process.

II. Naked Conclusory Allegations that Respondents are "De Facto" Common Carriers do Not Support Conclusions that the Federal Maritime Commission has Either Subject Matter Or Personal Jurisdiction over Respondents.

While having nothing to do with "just discovered information", we assume that the Verified Amended Complaint is an effort "to correct" the Complaint, among other reasons, with respect to the fact that the Complaint contained no allegations as to how Respondents would be personally subject to the Shipping Act violation alleged---i.e., 46 U.S.C. § 41103(a). That section of the Act prohibits "[a] **common carrier, marine terminal operator, or ocean freight forwarder**, either alone or in conjunction with any other person, directly or indirectly, [from] knowingly disclos[ing], offer[ing], solicit[ing], or receiv[ing] any information concerning the nature, kind, quantity, destination, consignee, or routing of any property tendered or delivered to a common carrier, without the consent of the shipper or consignee. . . ." (Emphasis supplied).

In the Complaint, Complainants left this to guesswork, or rather lengthy and costly analysis on the part of Respondents, as to how Respondents were or were not acting as either common carriers, marine terminal operators, or ocean freight forwarders. In fact, this was the salient objective of Respondents' Motion to Dismiss---i.e., to submit that there was neither subject matter nor personal jurisdiction allegations in the Complaint, which if taken as true, would subject this matter and these individuals (Respondents) to the jurisdiction of the Commission and the Act. There are still no such plausible allegations in the Verified Amended Complaint.

Complainant commences it's supposed corrective actions in paragraphs 18 through 21, by stating naked conclusory allegations that the FMC has subject matter jurisdiction and personal jurisdiction over each Respondent pursuant to the Act. Further, Complainant

efficiently, without fanfare or supporting information, old or recently discovered, alleges that each of the Respondents are common carriers as defined at 46 U.S.C. § 40101.¹ Without further argument, Respondents note that no further discussion is necessary in order to state that these allegations in the named paragraphs are in and of themselves conclusory and in contradiction to the standards of *Twombly*. Therefore, Respondents now turn to the content of Paragraphs 27 through 30 to determine whether these are the magic life-giving provisions to the conclusory allegations that Respondents acted as common carriers. It is our view that they are not.

Paragraphs 27 through 30 focus on a single “Logfret Cargo Line” house bill (Complainant’s Ex. 2 to the Verified Amended Complaint) issued by Logfret B.V., by Logfret B.V. employees, on January 5, 2017, wherein Deltrans International Shipping Corp., c/o Delmar USA was used as destination handling agent. They term this house bill with the “Logfret Cargo Line” banner as a fictitious non-existing entity, neither licensed nor registered with the Commission as an NVOCC. It is further alleged that Respondents “used Logfret B.V. as a means of handling logistics and administration of the aforementioned shipment, including invoicing and personnel support.” Complainant then concludes in Paragraph 30 that by the issuance of this house bill by Logistics, B.V. employees, each of the Respondents acted as **de facto** “common carriers” and “non-vessel operating common carriers”, and, thereby, are subject to the provisions of 46 U.S.C. § 41103(a). These are clearly *non sequiturs* and inconsistent facts averred for the following reasons:

1. The so-called Logfret Cargo Line house bill noted in Exhibit 2 of Complainant’s Verified Amended Complaint above, averred to be fraudulent, and on behalf of a fictitious company, was issued by Logfret B.V. and by Logfret B.V. employee, Andre Conrads, Coordinator of Ocean Freight, of Logfret, B.V. (Complainant’s Exhibit 8, Verified Amended Complaint, E-mail dated April 6, 2017 from Andre Conrads to Jennifer Brown; Respondent’s Exhibit 2, Opposition to Amend Motion to Amend, Declaration of Linda Sieval, items no. 1 and 2).

2. Respondents Linda Sieval was an employee of Logfret, B.V. at the time; Hans Bergwerff was the Managing Director, and part owner of Logfret, B.V. at the time; and it has not been plausibly averred in either the Complaint or the Verified Amended Complaint that

¹ We assume that they mean as defined at 46 U.S.C. § 40102(6), which is the statutory section that does define that term. This erroneous reference to 46 U.S.C. § 40101 in reference to the definitions of “common carrier” and “non-vessel operating common carrier” is extant throughout the Complainant’s Motion to Amend, and Respondents will not correct it at every turn. We believe it suffices to note it this once.

Kirsha, B.V. had any direct involvement with the operations of Logfret, B.V. Kirsha, B.V. seems to be the afterthought thrown in for good measure throughout this pleading phase, but with few factual averments that would directly tie it to any operations of Complainant meaningful to their various versions of Complaints submitted to the Administrative Law Judge.

3. These averments that Logfret Cargo Line is a non-existing fictitious entity and that the house bill in question is fraudulent since it is on behalf of a non-existing entity are absurd in view of the following indisputable facts:

a) The address on that bill of lading, (Exhibit 2, Verified Amended Complaint), Z.I. du Coudray-2, Rue Copamic-93505 Aulnay-Sous-Bois cedex France, is the address of Logistique Holding, France, Logfret's ultimate parent as noted in Exhibit 6, Complainant's Verified Amended Complaint. (Exhibit 2, Opposition to Amend Motion to Amend, Declaration of Linda Sieval, items no. 1 and 3; and Exhibit 6, Verified Motion to Amend).

b) All Logfret bills of lading issued by Logfret, B.V. for the period subject of this proceeding to the present contain the same LOGFRET CARGO LINE banner, the same French address, which is the address for Logistique Holdings, the holding company of Logfret, Inc. located at the French address on all of these bills of lading, and all other format markings on the Logfret bill of lading of Exhibit 2, Complainant Motion to Amend. See Attachments A-C to compare the face sheet of historical and current Logfret bills of lading. (Respondents' Exhibit 2, Opposition to Motion to Amend, Declaration of Linda Sieval, item no. 4, Attachments A-C). They are curiously identical in terms of the bill of lading format in that they all include the "Logfret Cargo Line" banner, the French address of Logistique Holdings, and the "Logfret" banner on the lower right hand side. It is not reasonable that Complainant now claims that the "Logfret Cargo Line" banner illustrates the Respondents' use of a non-existing fictitious entity to hold out as de facto carriers when, in fact, this has been the identical usage of this bill of lading for all Logfret ocean shipping transactions.

c) However, for a complete review of this nonsense allegation by Complainant--- i.e., that somehow usage of the normal Logfret bill of lading by Respondents results in their acting as common carriers due to the physical non-existence of that carrier--- also note herein in that the Terms and Conditions of Attachment A of Respondents' Exhibit 2, Opposition to Motion to Amend, Declaration of Linda Sieval, item no. 4, also are bereft of identification of any corporate person as the common carrier. Note that the definition of "Carrier" in the terms and conditions of the two shipments define it at paragraph 2 as ". . . the term "Carrier" with Capital "C" shall include the carrier named on the front side hereof. . . ." Note that there is no

corporate identification of the corporate person in the remainder of the Terms and Conditions, and that the “carrier named on the front side” is none other than “Logfret Cargo Line”, which Logfret is now attempting to allege that this “entity” is a fictitious, fraudulent, and non-existent entity.² Please note that the Dutch Shipper has given its assent to Respondents that these two shipment documents can be utilized by Respondents for this purpose. The communication from the Dutch shipper to Respondent Linda Sieval is provided herein as Exhibit 3 to Respondents’ Opposition to Complainant’s Motion to Amend Complaint.

Lastly, we request that the Administrative Law Judge take judicial notice that Rule 8 published pursuant to Commission regulations also notes in the Terms and Conditions published and/or filed in February 25, 2008 at paragraph 2 (a) that “In this bill of lading: “Carrier” means and includes Carrier named on the face side hereof. . . .” Attached hereto as Exhibit 4 of Respondents’ Opposition to Amend Complaint. We conclude from this Exhibit that Complainant has been flying under the radar for some time, and now wishes to magically impute this to Respondents detriment.

The long and the short of it, Respondents never issued or held out in any other manner as a common carrier other than through the process by which Logfret, Inc. has been historically doing so, and always as managers and employees of Logfret, B.V. As noted, neither “Logfret Cargo Line” nor “Logfret” in the lower right corner of the bill of lading are formally assumed names on Logfret, Inc.’s Commission’ license. Needless to say, this also speaks volumes for the “just discovered additional information”, the averred predicate upon which the Administrative Law Judge relied to conditionally grant the Motion to Amend, and the extension of time to respond to Respondents Motion to Dismiss. In other words, the bill of lading, Exhibit 2, Verified Amended Complaint, is the normal bill of lading issued by Logfret B.V. in its general course of operating, and technically, it is not issued on behalf of a non-existing company, or at the very least one can reasonably conclude that Logfret does not intend to do so even though it has, in fact, been operating with a trade name, Logfret Cargo Line, without Commission authority, and without mention of its corporate name on either the face of the bill of lading or in its terms and conditions in violation of Commission regulations.

² If one is to take the Complainant’s allegations seriously, this mode of operation by Logfret, for who knows how long, has been in violation of 46 CFR §515.3 by acting as an ocean transportation intermediary without holding a valid license issued by the Commission, since “Logfret Cargo Line” is now being disowned by Logfret, Inc. Or on the other hand, it may wish to cure this defect by registering the trade name in a U.S. state and applying to the Commission for use of the trade name. What it cannot do for this proceeding, is now claim that “Logfret Cargo Line” is an orphan.

This analysis of the facts alleged and pleaded in the Complaint and the Verified Amended Complaint underscores that Complainant had complaints relating to Respondents' activities when acting as manager and employees of Logfret B.V., as an agent for Logfret, Inc., for not using Logfret, Inc. as the destination handling agent in the U.S. for certain regions, and for divulging sensitive commercial information to the selected handling agent for the U.S. imports, an alleged common carrier competitor of Logfret, Inc. However, those alleged activities as Respondents argued previously do not comprise a violation of 46 U.S.C. § 41103(a). Respondents were clearly not acting as common carriers. The only party which acted as a common carrier (issued bills of lading) is Complainant itself albeit through its agent Logfret B.V. And in view of the above discussion of the historical usage of Logfret, Inc.'s bill of lading this was done somewhat ambiguously. On the other hand, the only other common carrier in the pleading is Delmar USA, the U.S. handling agent appointed by Logfret B.V. for delivery of Logfret, Inc. shipments in the U.S. However, the pleadings clearly show that Delmar USA, as Logfret, Inc.'s handling agent, was not acting as a common carrier. There are no allegations of Delmar USA acting as a common carrier, and as noted previously, that entity is not a named respondent in this case. Therefore, for purposes of this section of the discussion, the pleadings clearly do not plausibly plead that any of the Respondents acted as common carriers. These allegations are seriously flawed and not remediable as has been repeatedly demonstrated.

III. Count I: Violation of 46 U.S.C. § 41104. Paragraphs 41 through 46 are alleged purportedly to claim that Respondents, as carriers, did not charge the required rates and charges. Respondents do not intend to respond to this further inane count in view of the fact that Respondents clearly did not act as carriers, and that, in fact, Complainant's allegation of a violation of this type applicable to the shipment included as Exhibit 2, of Complainant's Verified Amended Complaint, per Respondents' arguments herein incorporated in toto, is in reality an allegation that Logfret, Inc. committed this violation.

IV. Futile Amendments Should Not be Permitted.

Pursuant to Fed. R. Civ. P. 15, amendments to pleadings should not be permitted where such amendments would be futile. *E.g., Virtue v. Int 'l Brotherhood of Teamsters Retirement & Family Protection Plan*, 893 F. Supp. 2d 46, 47 (D.D.C. 2012) (futility of amendment is valid basis for denying motion to amend). Denial of a motion to amend on futility grounds is specifically aimed at preventing the waste of resources of the court and of the parties. *Frederick v. Michigan Dep't of Corrections*, 2012 WL 1079958 at * 6 (E.D. Mich. 2012); *Mizzaro v. Home Depot, Inc.*, 544 F.3d 1230, 1255 (11th Cir. 2008) (motion for leave to amend denied

because justice does not require court to waste their time on hopeless cases). Here, because Complainant's amended pleading would be futile, its Motion to Amend should be denied.

V. Relief Requested.

For the foregoing reasons, Respondents hereby request that Complainant's Motion to Amend Complainant's Verified Complaint be denied and that the Commission dismiss the Complaint as to all Respondents with prejudice and to award Respondents reasonable attorney's fees pursuant to 46 C.F.R. § 502.254. In the alternative, Respondents request that Complainant be allowed a period of time to respond that takes into consideration the apparent frivolous approach that Complainant has taken in this proceeding and furthermore, considering that they are already pursuing commercial/legal remedies in The Netherlands on the activities which are clearly the true legal disputes among the parties.

Respectfully submitted

A handwritten signature in blue ink, appearing to read "Carlos Rodriguez", is written over a horizontal line.

Carlos Rodriguez, Esq.
Husch Blackwell, LLP
750 17th St., N.W. Suite 900
Washington, D.C. 20006
Telephone: 202-378-2365
E-mail:
carlos.rodriguez@hsuchblackwell.com
Counsel for Respondents

Dated: March 7, 2019

CERTIFICATE OF SERVICE

The undersigned hereby certify that on the 7th day of March, 2019, a true and complete copy of the foregoing *Opposition to Motion to Amend Complaint* was served on the following by first class certified mail, postage pre-paid, return receipt requested and by e-mail.

Ashley W. Craig
Venable LLP
600 Massachusetts Avenue, N.W.
Washington, D.C. 20001

Counsel for Complainant

A handwritten signature in blue ink, reading "Carlos Rodriguez", is written over a horizontal line.

Date filed:
March 7, 2019

Carlos Rodriguez
Counsel for Respondents

Kirsha, B.V.
Hans Bergwerff
Linda Sieval

Exhibit 1

LOGISTIQUE HOLDING

*Z.I. du Coudray - 2, rue Nicolas Copernic
93605 AULNAY SOUS BOIS CEDEX
Tel : (33) 1.49.39.68.64 – Fax : (33) 1.49.39.68.62*

By mail and email

April 14, 2017

Logfret B.V.
Attn. Mr Bergwerff
Ringdijk 366
2983 GR RIDDERKERK

Kirsha B.V.
Attn. Mr Bergwerff
Noordersingel 78
2993 TA BARENDRECHT

Dear Mr Bergwerff,

This letter is to express our concerns and to demand you to immediately cease all acts and activities that may be against the interest of Logfret B.V. (**Logfret**).

I RECENT DEVELOPMENTS

Our recent investigations into your behaviour revealed some shocking new facts:

- a. On 16 March 2017 you sent an email to the employees of Logfret. In short, this email states that you expect to become the sole shareholder of Logfret on short notice – which is obviously incorrect – and that Logistique Holding (LH) is (allegedly wrongfully) trying to put you under undue pressure to step down as a director. Also, the emails suggest that you reached out to two major international organisations that appear to be competitors of the Logfret-group in order to sell (a part of) your (future) equity interest in Logfret. All these actions – poisoning the personnel of Logfret against its majority shareholder, reaching out to competitors and potentially even sharing company-sensitive information with competitors of LH – are considered to be solely in your interest and/or go against the interest of the company. By taking these actions, you act in clear breach of your duties as a statutory director of Logfret.
- b. On or about 27 February 2017, you incorporated a company called MSX Worldwide Express Ltd. The fact that you did not inform LH about this incorporation, nor asked for its approval, is in breach of the governance arrangements agreed upon in the company. Also, it is unclear to LH why this company was incorporated (your answer during the hearing – to cease potential future business opportunities following Brexit – was not very convincing). Obviously, as statutory director of Logfret, you are not allowed to keep ‘corporate opportunities’ or business that belongs to Logfret outside of reach of Logfret (by giving it to this newly incorporated company) and you should refrain from any attempt to do so.
- c. Meanwhile, we understand that you have asked employees of Logfret to have Logfret enter into transport contracts with competitors of the Logfret-group, implying that LH approves of this behaviour whilst knowing this is not the case. This is impermissible. Being part of the Logfret-group, Logfret is obliged to grant business-where possible-within the Logfret-group.

This has been common corporate practice for the last few years and you are not allowed to deviate from that practice.

- d. Finally, it came to the attention of LH that you have been trying to snap up employees from the Logfret-group to start working for one of your own companies. This is supported by your email of 16 March 2016. Again, as a statutory director of Logfret, part of the Logfret-group, you are not allowed to take any such actions that go against the interest of the company and the group.

It does not require further explanation that these acts are harming Logfret and the Logfret-group. In addition to the fact that you should have refrained from these activities in the first place, it is striking that you never informed LH about this. From previous correspondence and your statements at the court hearing we understand that you believe that you no longer have the obligation to inform LH about your activities and/or developments as LH – in your view – no longer has any (shareholder) rights (information nor approval rights). Naturally, this is total nonsense. By acting and behaving like you are the sole shareholder of Logfret – stripping LH of all its rights – you fail to recognize that Dutch company law does not enable a (minority) shareholder to do so, even if the rights of another shareholder are suspended. Besides that, LH explained in its correspondence, the writ of summons and at the court hearing that there is no obligation for LH to offer its shares to your personal holding company and that even if there would be an obligation for LH to offer its shares, this does not release you from the obligation to inform LH or the general meeting of shareholders about your actions as a statutory director.

II FULL ACCESS TO ADMINISTRATION OF LOGFRET

On 20 February 2017, LH discovered it did not have access to the administration of Logfret B.V. (**Logfret**). It appeared that you – without the necessary approval of LH or even informing LH of this – replaced the operating system (Satellite) and the accounting system (IRIS) by alternative software named 'Cargowise'. Due to this replacement, LH no longer has insight in the financials and/or control over its subsidiary. This behaviour is in breach of governance, unacceptable and goes against the interest of the company and the group.

As explained, changing the administration system of Logfret has a negative impact on the Logfret-group's banking arrangements, intercompany netting and obligations towards third parties. Being majority shareholder of Logfret and having consolidated all financial statements, it is of crucial importance that LH has insight in the administration/financials of Logfret and is actually 'in control' of Logfret. Neither is currently the case.

In the letter of your attorneys of 9 March 2017 and at the court hearing of 10 April 2017 your attorneys offered LH full access to the Cargowise system. LH stands its point of view that the replacement of the Satellite and IRIS system by the Cargowise system should be reversed. However, LH insists to have full insight into the administration and financials of the company, which expressly includes full access to the Cargowise system.

III CONCLUSION

From the above, we conclude that you are acting against the interest of Logfret and the Logfret-group. We herewith demand you to immediately cease all acts and activities that may be against the interest of Logfret B.V., which is included but not limited to:

III CONCLUSION

From the above, we conclude that you are acting against the interest of Logfret and the Logfret-group. We herewith demand you to immediately cease all acts and activities that may be against the interest of Logfret B.V., which is included but not limited to:

- i) refrain from approaching third parties (especially competitors of Logfret or the Logfret-group) and entering into conversations with such parties about the potential sale of shares in Logfret;
- ii) refrain from sharing company sensitive information to third parties and/or competitors of Logfret and/or the Logfret-group;
- iii) refrain from snapping up employees of Logfret and the Logfret-group;
- iv) refrain from communicating (negative and/or false) statements to employees of Logfret and its subsidiaries and correct the statements made in your email dated 16 March 2017.

Also, we demand that – on or before 18 April 2017 – you

- v) give us full insight to the administration and financials of the company, which expressly includes full access to the Cargowise system; and
- vi) provide full disclosure of all details relating to your actions described above under a until d.

This letter – read in conjunction with the writ of summons and pleading notes in interim proceedings – can be deemed a letter of objections (bezwarenbrief) within the meaning of 2:349 Dutch Civil Code.

Marc Millet
Logistique Holding SAS

EXHIBIT 2

LINDA SIEVAL DECLARATION

ATTACHMENTS A,B, and C

**BEFORE THE
FEDERAL MARITIME COMMISSION**

LOGFRET, INC.,

Complainant,

Docket
No. 18-10

KIRSHA, B.V., Leendert Johannes BERGWERFF a/k/a
Hans BERGWERFF, LINDA SIEVAL,

Respondents.

LINDA

**DECLARATION OF LINDA SIEVAL IN SUPPORT OF RESPONDENTS'
OPPOSITION TO COMPLAINANT'S MOTION TO AMEND COMPLAINT**

I, Linda Sieval, declare under penalty of perjury that the following is true and correct:

1. I have reviewed the face of the bill of lading produced by Complainant in its Verified Amended Complaint, Exhibit 2. It is dated as issued January 5, 2017 by Andre Conrads in Ridderkerk, The Netherlands, and identifies Deltrans International Shipping Corp. as the delivery party in Atlanta. This bill of lading identifies the following address in the Carrier signature box (lower right side corner): Z.I. du Coudray-2, Rue Copernic-93605 Aulnay-Sous-Bois cedex France. At the upper left top of the bill of lading the following language appears: LOGFRET CARGO LINE.
2. On January 5, 2017, the date of the above bill of lading, Andre Conrads, the person who is shown as issuing the bill of lading, was an employee of Logfret, B.V.
3. The address on that bill of lading, Z.I. du Coudray-2, Rue Copernic-93605 Aulnay-sous-Bois cedex France, is the address of Logistique Holding, France, Logfret's ultimate parent of Logfret, and it is my understanding that this is the address shown on all Logfret bills of lading issued by Logfret B.V.

4. See the following attachments, Attachments A-C, copies of Logfret bills of lading provided to the undersigned by past shippers of Logfret and copies of other Logfret bills of lading for current shipments which were handled from other Logfret country locations and are on the IT system of my current employer, Visa Global Logistics, B.V. relating to current shipments handled on behalf of Logfret from other countries. These bills of lading contained the LOGFRET CARGO LINE banner and the French Logistique Holding address and all other format markings as indicated in Exhibit 2. Even current bills of lading in the Exhibit contain the same LOGFRET CARGO LINE banner, the French address, and similar markings.

I declare under penalty of perjury that the foregoing is true and correct.

EXECUTED ON: March 5, 2019



Linda Sieval

ATTACHMENTS A

TO

EXHIBIT A

DECLARATION: LINDA SIEVAL

**(TWO SHIPMENTS FROM THE NLs WITH TERMS AND
CONDITIONS**

OCEAN BILL OF LADING

SHIPPER EXPORTER

HANS BOODT MANNEQUINS INTERNATIONAL
MERWEDEWEG 6
3336 LG ZWIJNDRECHT
THE NETHERLANDS

Bill of lading no.
1ME600803

Container No.

EXPORT REFERENCES
VO16-02628

CONSIGNEE

KLASIKO LATINO AMERICA S.A.
6132 NW, 74TH AVE
MIAMI, FL33166
UNITED STATES OF AMERICA
PHONE: +17864588854
HUGOVILLANUEVA@LIDICE.NET

FORWARDING AGENT - REFERENCES

PIER

NOTIFY PARTY

SAME AS CONSIGNEE

PRE CARRIAGE BY (domestic routing/export instructions)

PLACE OF RECEIPT (Point and country of Origin)
ZWIJNDRECHT, NL

PLACE OF DELIVERY (Onward Inland Routing)
MIAMI

OCEAN VESSEL
CMA CGM JAMAICA, 117VBW

PORT OF LOADING
ROTTERDAMPORT OF DISCHARGE
MIAMI, FL

FOR TRANSHIPMENT TO

PARTICULARS FURNISHED BY SHIPPER

PARTICULARS FURNISHED BY SHIPPER				
MARKS AND NUMBERS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	WEIGHT	MEASUREMENT
VO16-02628 LCL/LCL MIAMI	2 PALLETS	MANNEQUINS VO16-02628 16 CARTONS PACKED ON 2 PALLETS COUNTRY OF ORIGIN : CHINA HS CODE: 96180000	200,00 KGS	4.920 CBM
LCL/LCL		<u>Freight Prepaid</u>		

FOR DELIVERY PLEASE APPLY TO

Logfret Inc.
4751 Best Rd. Suite 205
College Park GA 30337
Direct: 770-679-6998
Email: Kmillar@us-logfret.com

IN ACCEPTING THIS BILL OF LADING, the Shipper, Consignee, Holder hereof, an Owner of the Goods. Agree to be bound by all of its stipulations, exceptions and conditions, whether written, printed or stamped on the front or back hereof, as well as the provisions of the above Carrier's published Tariff rules and regulation, as if there were all signed by such Shipper, Consignee, Holder or Owner and it is further agreed that Containers may be stowed on deck, as per Clause 7.

IN WHITNESS WHEREOF, the Carrier or its Agents has affirmed to ISSUE bills of lading, all of this tenor and date. ONE of which being accomplished the others to stand void.

IN CONNECTION WITH FREIGHT, SEE CLAUSE
15 and 3 OF THIS BILL OF LADING



	rate	per	
TOTAL CHARGES			

Z.I. du Coudray – 2, rue Copernic- 93605 AULNAY-SOUS-BOIS cedex- France
Tel : (1) 49 39 68 40/44 – Fax : (1) 49 39 68 48

BY STEFAN OOSTEROM

DATED AT 23/06/2016. Ridderkerk

BILL OF LADING

Originals : 0
Copies : 0
Seaway : 1

TERMS OF BILL OF LADING CONTINUED ON NEXT PAGES

Received for shipment in apparent good order and condition, unless otherwise noted herein, the number containers or other packages or pieces listed in Part I said by the shipper to hold the good described in part II. Unless otherwise specified, the container(s) covered by the bill of lading are the property of the Carrier and are to be returned to the Carrier. Said Carrier agrees to carry the shipment, subject to all the terms and conditions of this bill of lading and the complete provisions of any Freight Tariff which may be applicable, from the port of loading named herein to the port of discharge, or to near thereto as the vessel can get, and leave always in safety and afloat, and there make delivery to consignee, on-carrier, or other person entitled to receive the shipment. If this is a Through Bill of Lading, the Carrier will, acting only as Shipper's AGENT, arrange for transportation of the shipment from place of origin to the port of loading by inland or other initial carrier(s). From the time the shipment is received by any inland or other initial carrier until it is delivered into the custody of the Carrier at the port of loading, the shipment will be governed solely by and be subject to the terms and conditions of the applicable tariff and bill of lading. Consignment note or other freight documents of such inland, initial, intermediate or delivering carrier. However, this carrier, guarantees the performance of the obligation of such other carriers under their freight documents. The liability of the Carriers as carrier shall commence when the shipment is delivered into its exclusive custody at the port of loading and shall and when the goods are delivered at the port of discharge. In issuing this bill of lading, the said Carrier agrees to assume responsibility for the transportation of property only over its own ocean route and acts only as Shipper's agent with respect to the segments of the through route before and beyond its own line. The Carrier will not be liable for any loss, damage, expense, or delay not occurring on its own segment of the through route. Where destination is beyond port of discharge, trans shipment to on-carrier shall be effected in accordance with Clause 11 of this bill of lading. The Carrier shall hold for the benefit or the shipper. Consignee or holder of the bill of lading all bills of lading, way bills, consignment notes, receipts or other documents issued by initial carrier, on-carriers or other custodians. The receipt, custody, carriage, delivery and trans-shipment of the shipment are subject to terms, conditions and limitations appearing on-the-face and back hereof, which shall govern the relations, whatsoever they may be, between the Shipper, Consignee or holder hereof, and Carrier, the master or ship in every contingency whatsoever, and whether the carrier be acting as agent, carrier or bailee and also in the event of or during deviation or of the goods. The terms hereof cannot be waived except by written notice signed by an authorized agent of the carrier.

1. This bill of lading shall have effect subject to the provisions of the Carriage of goods By sea Act of the United Stage of America, approved April 16, 1936, which shall be deemed to be incorporated herein, and nothing herein contained shall be deemed a surrender by the carrier of any of its rights or immunities or limitations or an increase of its responsibilities or liabilities under said Act. The provisions stated in said Act (except as otherwise specifically provided herein) shall govern before the shipment is loaded on and after it is discharged from the vessel and throughout the entire time the goods are in the exclusive custody of the Carrier. If this bill of lading is issued in a locality where there is in force a Carriage of goods by Sea Act Ordinance or statute of a nature similar to the International convention for the Unification of certain Rules Relating to Bills of Lading dated at Brussels August 25,1924, it is subject to the provisions stated in such Act. Ordinance or Statute and rules thereto annexed which may be in effect where this bill of lading is issued.

1A The Carrier shall be entitled to full benefit of and right to all limitations, or exemption from liability authorized by any provisions of Sections 4281 to 4286 inclusive of the Revised of the United States and amendments thereto are of any other provisions of the law of the United States or of any other country whose laws shall apply. The terms of this bill of lading constitute the contract of carriage which is between the Shipper. Consignee and owner of goods and the owner or demise character of the vessel designated to carry the shipment. It is understood and agreed that other than said ship owner or demise charterer no person firm or corporation or other legal entity whatsoever (including the Master, officers and crew of the vessel, all agents, employees, representatives, and all stevedores watchmen and other independent contractors whatsoever) is or shall be deemed to be liable with respect to the goods as owner, bailee or otherwise however in contact or in part II however it shall be adjudged that any other than said ship owner or demise charterer is carrier or bailee of the goods or under any responsibility with respect thereto, all limitations of and exonerations from liability provided by law or by the terms hereof shall be available to such other. In contracting for the foregoing exemptions limitations and exonerations from liability the Carrier is acting as agent and trustee for the other above mentioned.

2.In this bill of lading the word "vessel" shall include any substitute vessel and any other means of conveyance owned chartered or operated by de carrier and used in the performance of this contract, **the word "Carrier" with Capital "C" shall include the carrier named on the front side hereof.** The vessel her owner demise charterer if bound hereby the time character and any substituted ocean carrier, whether the owner or charterer shall be acting as a carrier or bailee: the word "Shipper" shall include the party for whose account the goods are shipped as well as the party named as such in this bill of lading the word "Consignee" shall include the holder of this bill of lading properly endorsed and the receiver and/or the owner of the goods the word "Charges" shall include freights and all expenses and money obligations incurred and payable by the owner of the goods, Shipper, Consignee or any of them the words "risk and expense of the goods" shall include the contents of the container(s) the words "government" and "authorities" shall each include the United Nations or any similar International organizations and also persons purporting to exercise control of a governmental nature.

3.The scope of the sea voyage herein contracted for shall include usual or customary or advertised ports of call whether named in this contract or not also ports in or out of the advertised geographical usual route of order even though in proceeding thereto the vessel may seal beyond the port of discharge named herein or in a direction contrary thereto, or return to the original port, or depart from direct or customary route and include all canals straits and other waters. The vessel may call at any port for the purpose of the current voyage or of a prior or subsequent voyage. The vessel may omit calling at any port whether scheduled or not, and may call at the same port more than once may discharge the goods during the first or subsequent call at the port of discharge, may for matters occurring before or after loading and either with or without the goods on board and before or after proceeding towards the port of discharge adjust compass dry dock with or without cargo on board stop for repairs shift berths make trial trips or tests take fuel or stores remain in port lie on bottom aground or at anchor sail without pilots tow and be towed and

save or attempt to save life or property and all of the foregoing are included in the contract voyage. The vessel may carry contraband explosives war like stores hazardous cargo and sail armed or unarmed and with and without convoy. The Carrier's sailing schedules are subject to change without notice both as to sailing date and date of arrival if this is Through Bill of Lading no carrier is bound to transport the shipment by any particular train, truck or vessel or in time of any particular market or otherwise than with reasonable dispatch no carrier shall be liable for delay not occurring on delivery to the next connecting carrier and any carrier shall have the right to forward the goods by substitute carrier.

4.In any situation whatsoever and whosoever occurring and whether existing anticipated before commencement of or during the voyage which in the judgment of the Carrier or the Master is likely to give rise to risk of capture seizure detention damage delay or disadvantage to or loss of the vessel or any part of her cargo to make in unsafe imprudent or unlawful for any reason to receive keep or load goods or commence or proceed in or continue the voyage or to enter or discharge the goods or disembark passengers at the port of discharge or the usual or agreed or intended place of discharge in such port or to give rise delay or difficulty in proceeding by the usual or intended route the Carrier or the Master may decline to receive keep or load the goods or may devan container(s) contents of any part thereof and may require the Shipper or other persons entitled thereto to take delivery of the goods at the port of shipment and upon failure to do so may warehouse the goods at the risk and expense of the goods or the vessel whether or not proceeding toward or entering or attempting to enter a port of discharge or reaching or attempting to reach a usual place of discharge therein or attempting to discharge the shipment may discharge the shipment may discharge the goods and/or devan the contents of any container(s) at another port in depot lighter craft or other place or may forward or trans ship them as provided in this bill of lading (clause 11) or the carrier or the master may retain the goods vanned or unwanned on board until the return of this vessel to the port of loading or to the port of discharge or until such time as the carrier or the Master thinks advisable and discharge the goods at any place whatsoever as herein provided. The Carrier or the Master is not required to give notice of such devanning or of discharge of the goods or of the forwarding thereof as herein provided they shall be at their risk expense such discharging shall constitute complete delivery and performance under this contract and the carrier shall be freed from any further responsibility unless it be shown that any loss or damage to the goods arose from Carrier's negligence in the discharge and delivery as herein provided. The burden of establishing such negligence being on the owner of the goods. For any service rendered to the goods as hereinabove provided or for any delay or expense to the vessel caused as a result thereof the carrier shall be entitled to a reasonable extra compensation and shall have lien upon the goods for such charge. Notice of disposition of the goods shall be mailed to Shipper or Consignee. Goods shut out from the vessel named herein for any cause may be forwarded on a substitute vessel of this line or at Carrier's option on a substitute vessel of another line.

5.The Carrier Master and vessel shall have liberty to comply with any orders or directions given by government of any nation or department thereof or any person acting or purporting to act with the authority of such government or by any committee or person having under the terms or war risk insurance on the vessel the right to give such orders or directions. Delivery or other description of the goods in accordance with such orders or directions shall be a fulfillment of the contract voyage.

6.The carrier shall not be responsible for the safe and proper stowing of goods in containers if such containers are loaded with goods by the shipper consolidator or inland carrier and no responsibility shall attach to the carrier for any loss or damage caused to contents by shifting overloading or improper packing of the container. Containers loaded by the shipper consolidator or inland carrier shall be properly sealed and the seal identification reference as well as the container reference shall be shown herein. The shipper consolidator or inland carrier shall inspect containers before loading them and loading of the containers shall be prima facie evidence that the containers were sound and suitable for use. The Carrier will not be liable in any event for the particulars furnished by shipper as shown in part II on the face of this bill of lading. This bill of lading is a receipt only for number of container or packages or pieces as shown in the Carrier's description in Part I on the face of this bill of lading.

The shipper Consignee and/or holder hereof agrees to be a liable for and shall indemnify the Carrier for any injury loss or damage including loss arising from Shipper's failure to declare correctly herein any of the particulars furnished by him including marks quantity and description of the goods weight and cubic measurement of goods and the exact total gross weight of container (container tare wt. and cargo wt.) also for any kind of damage or expense caused by the contents of said container(s) to other property or to persons.

7. Goods may be stored in containers. Container(s) may be stowed on deck (unless this bill of lading is clausued "stow under deck" on the face hereof and when so stowed shall be deemed for all purposes to be stowed under deck. Special container(s) or cargo space with refrigeration or heating shall not be furnished unless contracted for in writing at time of booking and freight in charged on the basis of the rates for cargo requiring such a special container(s) or space as provided in the tariff. Shipper shall advise Carrier of required temperature range when delivering goods to the Carrier and Carrier shall exercise due diligence to maintain required range while the containers are in its custody and control. The Carrier does not warrant refrigerating or containers and shall not be responsible for its operation or maintenance except while the containers are in its actual custody and control at which time the Carrier shall exercise responsible care in operation or maintenance of such machinery.

8.Deck cargo (except containers carried on deck) and live animals are received and carried solely at Shipper's and Consignee's risk (including accident or mortality of animals) and the Carriers shall not in any event be liable for any loss or damage thereto arising or resulting from any matters mentioned in section 4. Sub-section 2 (a) to (p) inclusive of the United States Carriage of Good By Sea Act or from any other cause whatsoever not due to the fault of the Carrier any warranty of seaworthiness in the promises being hereby waived and the burden of proving liability being in all respect upon the Shipper or consignee Except as provided above such shipments shall be deemed goods and shall be subject to all terms and provisions in the bill of lading relating goods

9.If the ship comes into collision with another ship as a result of the negligence of the other ship and any act. Neglect or default of the Master mariner pilot or the servants of the Carrier in the navigation or in the management of the ship the owners of the goods carried hereunder will indemnify the Carrier against all loss or liability to other or non-carrying ship of her owners in so far as such los or liability represents loss of or damage to or any claim whatsoever of the owners of the said goods paid or payable by other or non-carrying vessel or her owners of said goods and set-off, recouped or recovered by the other or non-carrying vessel or her owners as part of their claim against the carrying vessel carrier.

10.General average shall be adjusted started and settled according to York-Antwerp Rules1950 except Rule XXII thereof at such port or place as may be selected by Carrier and as to matters not provided for these Rules, according to the laws and usage at the port of New York. Average agreement for bond and such additional security may be required by the Carrier must be furnished before delivery of goods. In de event of accident danger damage or disaster before or after commencement of the voyage resulting from any cause whatsoever whatsoever due to negligence or not for which or for which of the consequence of which the Carrier is not responsible by statute contract or otherwise the goods the Shipper and the Consignee shall contribute with the Carrier in general average to the payment of any sacrifices losses or expenses of a general average nature that may be made or incurred and shall pay salvage and special charges incurred in respect of the goods. If a salvaging ship is owned or operated by the Carrier salvage shall be paid for us fully and in the same manner as if such salvaging ship belonged to strangers. Cargo's contribution to general average shall be paid to the owners even when such average is the result of fault neglect or error of the Master pilot or crew. The shippers and Consignees expressly renounce any all codes statutes laws or regulations which might otherwise apply.

11.Whosoever the carrier or Master may deem it advisable or in any case received for shipment at an inland place or at where the ship will not call or where the goods are destined for part(s) or place(s) at which the ship will not call and particularly but not exclusive where the place of receipt for shipment and the port of loading or where the Port of Discharge from ship and Destination of the goods named in the face hereof are not the same the Carrier may without Notice forward the whole or any part of the shipment before or after loading at the original port of Shipment or any other place or places even though outside the scope of the voyage or the route or beyond the Port of Discharge or the destination of the goods by water by land or by any combination thereof thereof operated by the Carrier or others and whether departed or arriving or scheduled to depart or arrive before or after the ship expected to be used for the transportation of the shipment. The Carrier may delay forwarding awaiting a vessel or conveyance in its own service or with which it has established connections. In all cases where the shipment in delivered to another carrier or to a Lighter Port Authority, Warehouseman or other Bailee for trans-shipment the liability of the Carrier shall absolutely cease when the goods are out of its exclusive possessions and the responsibility of this Carrier during any such period shall be that of an agent of the Shipper and/or Consignee and this Carrier shall be without any other responsibility whatsoever.

The carriage by any trans-shipment or on-carrier and all trans-shipment or forwarding shall be subject to all be subject to all the terms whatsoever in the regular form of bill of lading consignment note contract or other shipping document used at the time by such carrier whether issued for the container(s) and/or goods or not and even though such terms and conditions may be less favorable to the Shipper or consignee than the terms and conditions of this bill of lading and may contain more stringent requirements as to notice of Claim or commencement of suit and may exempt the on-carrier from the place where the goods are received for shipment to the Port of Lading or for on-carriage from the Port of Discharge from ship to destination over the rate prevailing at the time of the engagement evidenced by this bill of lading which letter rate has been used in computing the freight charges on this shipment shall be a charge and lien upon the goods.

12.The carrier shall not be required to separate or deliver goods in accordance with brand marks numbers size or types of packages as stated by the Shipper in his particulars (Part II hereof) but only deliver total number of containers, packages units shown in Carrier's description (Part I hereof) Carrier shall not be liable for mysterious disappearance or theft of goods unless shown to be due to Carrier negligence and to have occurred while goods were in Carrier's sole custody and control Carrier shall not be liable for any consequential or special damages and shall have the option of replacing lost goods or repairing damaged goods.

13.The Shipper, Consignee or cargo owner shall be liable for indemnify the Carrier and vessel and hold them individually and severally harmless against and the Carrier shall have a lien on the goods for all expenses for cooping, repairing fumigating repacking or reconditioning the goods all expenses for repairing containers damaged while in the possession of shipper or consignee and demurrage on containers, or Shipper's or Consignee's failure to supply information or otherwise comply with all laws and regulations in connection with the goods or

from any other act or omission of the Shipper or Consignee. The Carrier's lien shall survive delivery and may be enforced by private or public sale and without notice.

14. Since freight is calculated on the basis of particulars furnished by the Shipper, the Carrier may at any time inspect the contents of container(s) and examine the contents of the packages weight measure and value the goods. In case Shipper's particulars are found to be erroneous additional freight is payable the Shipper, Consignee and goods shall be liable for all expense incurred for examining, weighing, measuring and valuing the goods. Full freight to destination shall be considered completely earned or shipment whether the freight be started or intended to be prepaid or to be collected at destination and the Carrier shall be entitled to all freight and charges due hereunder whether actually paid or not and to receive and retain them irrevocably under all circumstances whatsoever vessel and/or goods lost or not lost or the voyage broken up or abandoned. All unpaid charges shall be paid in full and without any offset counterclaim or deduction in the currency of the United States or at Carrier's option its equivalent in foreign currency. The said Carrier shall have a lien on the goods which lien shall survive delivery for all freight and charges due under this bill of lading and under any contract preliminary hereto including dead freight and demurrage and for the cost of receiving such freight and for the cost of receiving such freight and charges and may enforce this lien by public or private sale and without notice. The Shipper Consignee and owner of the goods shall be jointly and severally liable to the Carrier for payment of all freight and charges and the performance of the obligation of each of them hereunder.

15. Neither this Carrier or any corporation owned by subsidiary to or associated or affiliated with the Carrier shall be liable to answer for or make good any loss or damage to goods occurring at any time and even though before loading on or after discharge from the vessel. By reason or by means of any fire whatsoever unless such fire shall be caused by its design or neglect.

16.In case of any loss damage to or in connection with goods exceeding in actual value the equivalent of \$500 lawful money of the United States per package or in case of goods not shipped in package per shipping unit the value of the goods shall be deemed to be \$500 per package of per shipping unit. The Carrier's liability if any shall be determined on the basis of a value of \$500 per package or shipping unit shall have been declared in writing by the Shipper upon delivery to the Carrier and inserted in this bill of lading and extra charge paid. In such case if the actual value of the goods per package or per shipping unit shall exceed such declared value the value shall nevertheless be deemed to be declared value and the Carrier's liability if any shall not exceed the declared value and any partial loss or damage shall be adjusted pro rata on the basis of such declared value. The words "shipping unit" shall mean each physical unit or piece of cargo not shipped in a package including articles or things of any description whatsoever except goods shipped in bulk and irrespective of the weight or measurement unit employed in calculating freight charges.

16.The Carrier and the vessel shall be discharged from liability in respect of loss damage mis delivery or in respect of any other breach of this contract whether occurring before loading on board or after discharge unless suit is brought within one year after delivery of the shipment or the date when the shipment or the date when the shipment or the date when the shipment should have been delivered. Suit shall not be deemed brought unless jurisdiction shall have been obtained from Carrier and/or the vessel by service of process or by an agreement to appear. The shipper, Consignee holder hereof or owner of the goods and their assignees subrogees or representatives shall file any and all claims directly with the Carrier or other party responsible for any loss damage injury expense or delay it being specifically agreed that this Carrier shall not be responsible for any loss damage, injury, expense or delay not occurring on its own ocean route not while the goods are not in its actual custody and control. Upon written request the Carrier will furnish Shipper, Consignee holder hereof and/or owner of the goods with original bills of lading receipts consignment notes or other documents being hold for their benefit which may be required to file claim against any other carriers or parties

17.Any bookings freight engagements or other agreements relating to the shipment previously made are superseded by the bill of lading and by Carrier's freight Tariff Rules and Regulations which shall be deemed incorporated herein as if set forth at length. The Carrier's Freight Tariff Rules and Regulations are filled with the Marine Commission, Washington D.C. and are also available at any of the Carrier's offices.

18.Nothing in this bill of lading shall operate to deprive the Carrier of any statutory protection or exemption from or limitation of liability contained in the laws of the United States or in the laws of any other country which may be applicable. The bill of lading shall be construed according to the terms of the United States and the shipper, consignee and holder hereof agree that any suits against the Carrier shall be bought in the Federal Courts of the United States in de City of New York. The terms of this bill of lading shall be separate and if any part of term hereof shall be held invalid such holding shall not effect the validity of enforceability of any other term hereof

OCEAN BILL OF LADING

SHIPPER EXPORTER

HANS BOODT INTERNATIONAL BV
MERWEDEWEG 6
3336LG ZWIJNDRECHT
THE NETHERLANDS

Bill of lading no.
1ME600056

Container No.

EXPORT REFERENCES
COMBINED SHIPMENTS

CONSIGNEE

ONE WORLD VISUAL
GALBRAITH AVENUE
CHARLES MACHEN 76
M4 2B5 TORONTO
CANADA

FORWARDING AGENT - REFERENCES

PIER

NOTIFY PARTY

PRE CARRIAGE BY (domestic routing/export instructions)

PLACE OF RECEIPT (Point and country of Origin)
ZWIJNDRECHT, NL

PLACE OF DELIVERY (Onward Inland Routing)
MISSISSAUGA

OCEAN VESSEL
QUEBEX EXPRESS 02W02

PORT OF LOADING
ANTWERPPORT OF DISCHARGE
TORONTO

FOR TRANSHIPMENT TO

PARTICULARS FURNISHED BY SHIPPER

[illegible]

FOR DELIVERY PLEASE APPLY TO

LOGFRET MONTREAL
300, MARCEL LAURIN SUITE 216 ST. LAURENT
H4 2L4 QUEBEC
CANADA

IN ACCEPTING THIS BILL OF LADING, the Shipper, Consignee, Holder hereof, an Owner of the Goods. Agree to be bound by all of its stipulations, exceptions and conditions, whether written, printed or stamped on the front or back hereof, as well as the provisions of the above Carrier's published Tariff rules and regulation, as if there were all signed by such Shipper, Consignee, Holder or Owner and it is further agreed that Containers may be stowed on deck, as per Clause 7.

IN WITNESS WHEREOF, the Carrier or its Agents has affirmed to ISSUE bills of lading, all of this tenor and date, ONE of which being accomplished the others to stand void.

IN CONNECTION WITH FREIGHT, SEE CLAUSE
15 and 3 OF THIS BILL OF LADING



Z.I. du Coudray – 2, rue Copernic- 93605 AULNAY-SOUS-BOIS cedex- France
Tel : (1) 49 39 68 40/44 – Fax : (1) 49 39 68 48

BY STEFAN OOSTEROM

DATED AT 14/01/2016, Ridderkerk

BILL OF LADING

Originals : 0
Copies : 0
Seaway : 1

TERMS OF BILL OF LADING CONTINUED ON NEXT PAGES

	rate	per	
TOTAL CHARGES			

Received for shipment in apparent good order and condition, unless otherwise noted herein, the number containers or other packages or pieces listed in Part I said by the shipper to hold the good described in part II. Unless otherwise specified, the container(s) covered by the bill of lading are the property of the Carrier and are to be returned to the Carrier. Said Carrier agrees to carry the shipment, subject to all the terms and conditions of this bill of loading and the complete provisions of any Freight Tariff which may be applicable, from the port of loading named herein to the port of discharge, or to near thereto as the vessel can get, and leave always in safety and afloat, and there make delivery to consignee, on-carrier, or other person entitled to receive the shipment. If this is a Through Bill of Lading, the Carrier will, acting only as Shipper's AGENT, arrange for transportation of the shipment from place of origin to the port of loading by inland or other initial carrier(s). From the time the shipment is received by any inland or other initial carrier until it is delivered into the custody of the Carrier at the port of loading, the shipment will be governed solely by and be subject to the terms and conditions of the applicable tariff and bill of loading. Consignment note or other freight documents of such inland, initial, intermediate or delivering carrier. However, this carrier, guarantees the performance of the obligation of such other carriers under their freight documents. The liability of the Carriers as carrier shall commence when the shipment is delivered into its exclusive custody at the port of loading and shall and when the goods are delivered at the port of discharge. In issuing this bill of lading, the said Carrier agrees to assume responsibility for the transportation of property only over its own ocean route and acts only as Shipper's agent with respect to the segments of the through route before and beyond its own line. The Carrier will not be liable for any loss, damage, expense, or delay not occurring on its own segment of the through route. Where destination is beyond port of discharge, trans shipment to on-carrier shall be effected in accordance with Clause 11 of this bill of loading. The Carrier shall hold for the benefit or the shipper. Consignee or holder of the bill of loading all bills of lading, way bills, consignment notes, receipts or other documents issued by initial carrier, on-carriers or other custodians. The receipt, custody, carriage, delivery and trans-shipment of the shipment are subject to terms, conditions and limitations appearing on-the-face and back hereof, which shall govern the relations, whatsoever they may be, between the Shipper, Consignee or holder hereof, and Carrier, the master or ship in every contingency whatsoever, and whether the carrier be acting as agent, carrier or bailee and also in the event of or during deviation or of the goods. The terms hereof cannot be waived except by written notice signed by an authorized agent of the carrier.

1. This bill of lading shall have effect subject to the provisions of the Carriage of goods By sea Act of the United Stage of America, approved April 16, 1936, which shall be deemed to be incorporated herein, and nothing herein contained shall be deemed a surrender by the carrier of any of its rights or immunities or limitations or an increase of its responsibilities or liabilities under said Act. The provisions stated in said Act (except as otherwise specifically provided herein) shall govern before the shipment is loaded on and after it is discharged from the vessel and throughout the entire time the goods are in the exclusive custody of the Carrier. If this bill of lading is issued in a locality where there is in force a Carriage of goods by Sea Act Ordinance or statute of a nature similar to the International convention for the Unification of certain Rules Relating to Bills of Lading dated at Brussels August 25,1924, it is subject to the provisions stated in such Act. Ordinance or Statute and rules thereto annexed which may be in effect where this bill of lading is issued.

1A The Carrier shall be entitled to full benefit of and right to all limitations, or exemption from liability authorized by any provisions of Sections 4281 to 4286 inclusive of the Revised of the United States and amendments thereto are of any other provisions of the law of the United States or of any other country whose laws shall apply. The terms of this bill of loading constitute the contract of carriage which is between the Shipper. Consignee and owner of goods and the owner or demise character of the vessel designated to carry the shipment. It is understood and agreed that other than said ship owner or demise charterer no person firm or corporation or other legal entity whatsoever (including the Master, officers and crew of the vessel, all agents, employees, representatives, and all stevedores watchmen and other independent contractors whatsoever) is or shall be deemed to be liable with respect to the goods as owner, bailee or otherwise however in contact or in part II however it shall be adjudged that any other than said ship owner or demise charterer is carrier or bailee of the goods or under any responsibility with respect thereto, all limitations of and exonerations from liability provided by law or by the terms hereof shall be available to such other. In contracting for the foregoing exemptions limitations and exonerations from liability the Carrier is acting as agent and trustee for the other above mentioned.

2.In this bill of lading the word "vessel" shall include any substitute vessel and any other means of conveyance owned chartered or operated by de carrier and used in the performance of this contract, **the word "Carrier" with Capital "C" shall include the carrier named on the front side hereof. It** the vessel her owner demise charterer if bound hereby the time character and any substituted ocean carrier, whether the owner or charterer shall be acting as a carrier or bailee: the word "Shipper" shall include the party for whose account the goods are shipped as well as the party named as such in this bill of lading the word "Consignee" shall include the holder of this bill of lading properly endorsed and the receiver and/or the owner of the goods the word "Charges" shall include freights and all expenses and money obligations incurred and payable by the owner of the goods, Shipper, Consignee or any of them the words "risk and expense of the goods" shall include the contents of the container(s) the words "government" and "authorities" shall each include the United Nations or any similar international organizations and also persons purporting to exercise control of a governmental nature.

3.The scope of the sea voyage herein contracted for shall include usual or customary or advertised ports of call whether named in this contract or not also ports in or out of the advertised geographical usual route of order even though in proceeding thereto the vessel may seal beyond the port of discharge named herein or in a direction contrary thereto, or return to the original port, or depart from direct or customary route and include all canals straits and other waters. The vessel may call at any port for the purpose of the current voyage or of a prior or subsequent voyage. The vessel may omit calling at any port whether scheduled or not, and may call at the same port more than once may discharge the goods during the first or subsequent call at the port of discharge, may for matters occurring before or after loading and either with or without the goods on board and before or after proceeding towards the port of discharge adjust compass dry dock with or without cargo on board stop for repairs shift berths make trial trips or tests take fuel or stores remain in port lie on bottom aground or at anchor sail without pilots tow and be towed and

save or attempt to save life or property and all of the foregoing are included in the contract voyage. The vessel may carry contraband explosives war like stores hazardous cargo and sail armed or unarmed and with and without convoy. The Carrier's sailing schedules are subject to change without notice both as to sailing date and date of arrival if this is Through Bill of Lading no carrier is bound to transport the shipment by any particular train, truck or vessel or in time of any particular market or otherwise than with reasonable dispatch no carrier shall be liable for delay not occurring on delivery to the next connecting carrier and any carrier shall have the right to forward the goods by substitute carrier.

4.In any situation whatsoever and whosoever occurring and whether existing anticipated before commencement of or during the voyage which in the judgment of the Carrier or the Master is likely to give rise to risk of capture seizure detention damage delay or disadvantage to or loss of the vessel or any part of her cargo to make in unsafe imprudent or unlawful for any reason to receive keep or load goods or commence or proceed in or continue the voyage or to enter or discharge the goods or disembark passengers at the port of discharge or the usual or agreed or intended place of discharge in such port or to give rise delay or difficulty in proceeding by the usual or intended route the Carrier or the Master may decline to receive keep or load the goods or may devan container(s) contents of any part thereof and may require the Shipper or other persons entitled thereto to take delivery of the goods at the port of shipment and upon failure to do so may warehouse the goods at the risk and expense of the goods or the vessel whether or not proceeding toward or entering or attempting to enter a port of discharge or reaching or attempting to reach a usual place of discharge therein or attempting to discharge the shipment may discharge the shipment may discharge the goods and/or devan the contents of any container(s) at another port in depot lighter craft or other place or may forward or trans ship them as provided in this bill of lading (clause 11) or the carrier or the master may retain the goods vanned or unwanned on board until the return of this vessel to the port of loading or to the port of discharge or until such time as the carrier or the Master thinks advisable and discharge the goods at any place whatsoever as herein provided. The Carrier or the Master is not required to give notice of such devanning or of discharge of the goods or of the forwarding thereof as herein provided they shall be at their risk expense such discharging shall constitute complete delivery and performance under this contract and the carrier shall be freed from any further responsibility unless it be shown that any loss or damage to the goods arose from Carrier's negligence in the discharge and delivery as herein provided. The burden of establishing such negligence being on the owner of the goods. For any service rendered to the goods as hereinabove provided or for any delay or expense to the vessel caused as a result thereof the carrier shall be entitled to a reasonable extra compensation and shall have lien upon the goods for such charge. Notice of disposition of the goods shall be mailed to Shipper or Consignee. Goods shut out from the vessel named herein for any cause may be forwarded on a substitute vessel of this line or at Carrier's option on a substitute vessel of another line.

5.The Carrier Master and vessel shall have liberty to comply with any orders or directions given by government of any nation or department thereof or any person acting or purporting to act with the authority of such government or by any committee or person having under the terms or war risk insurance on the vessel the right to give such orders or directions. Delivery or other description of the goods in accordance with such orders or directions shall be a fulfillment of the contract voyage.

6.The carrier shall not be responsible for the safe and proper stowing of goods in containers if such containers are loaded with goods by the shipper consolidator or inland carrier and no responsibility shall attach to the carrier for any loss or damage caused to contents by shifting overloading or improper packing of the container. Containers loaded by the shipper consolidator or inland carrier shall be properly sealed and the seal identification reference as well as the container reference shall be shown herein. The shipper consolidator or inland carrier shall inspect containers before loading them and loading of the containers shall be prima facie evidence that the containers were sound and suitable for use. The Carrier will not be liable in any event for the particulars furnished by shipper as shown in part II on the face of this bill of lading. This bill of lading is a receipt only for number of container or packages or pieces as shown in the Carrier's description in Part I on the face of this bill of lading.

The shipper Consignee and/or holder hereof agrees to be a liable for and shall indemnify the Carrier for any injury loss or damage including loss arising from Shipper's failure to declare correctly herein any of the particulars furnished by him including marks quantity and description of the goods weight and cubic measurement of goods and the exact total gross weight of container (container tare wt. and cargo wt.) also for any kind of damage or expense caused by the contents of said container(s) to other property or to persons.

7. Goods may be stored in containers. Container(s) may be stowed on deck (unless this bill of lading is clausued "stow under deck" on the face hereof and when so stowed shall be deemed for all purposes to be stowed under deck. Special container(s) or cargo space with refrigeration or heating shall not be furnished unless contracted for in writing at time of booking and freight in charged on the basis of the rates for cargo requiring such a special container(s) or space as provided in the tariff. Shipper shall advise Carrier of required temperature range when delivering goods to the Carrier and Carrier shall exercise due diligence to maintain required range while the containers are in its custody and control. The Carrier does not warrant refrigerating or containers and shall not be responsible for its operation or maintenance except while the containers are in its actual custody and control at which time the Carrier shall exercise responsible care in operation or maintenance of such machinery.

8.Deck cargo (except containers carried on deck) and live animals are received and carried solely at Shipper's and Consignee's risk (including accident or mortality of animals) and the Carriers shall not in any event be liable for any loss or damage thereto arising or resulting from any matters mentioned in section 4. Sub-section 2 (a) to (p) inclusive of the United States Carriage of Good By Sea Act or from any other cause whatsoever not due to the fault of the Carrier any warranty of seaworthiness in the promises being hereby waived and the burden of proving liability being in all respect upon the Shipper or consignee Except as provided above such shipments shall be deemed goods and shall be subject to all terms and provisions in the bill of lading relating goods

9.If the ship comes into collision with another ship as a result of the negligence of the other ship and any act. Neglect or default of the Master mariner pilot or the servants of the Carrier in the navigation or in the management of the ship the owners of the goods carried hereunder will indemnify the Carrier against all loss or liability to other or non-carrying ship of her owners in so far as such los or liability represents loss of or damage to or any claim whatsoever of the owners of the said goods paid or payable by other or non-carrying vessel or her owners of said goods and set-off, recouped or recovered by the other or non-carrying vessel or her owners as part of their claim against the carrying vessel carrier.

10.General average shall be adjusted started and settled according to York-Antwerp Rules1950 except Rule XXII thereof at such port or place as may be selected by Carrier and as to matters not provided for these Rules, according to the laws and usage at the port of New York. Average agreement for bond and such additional security may be required by the Carrier must be furnished before delivery of goods. In de event of accident danger damage or disaster before or after commencement of the voyage resulting from any cause whatsoever whatsoever due to negligence or not for which or for which of the consequence of which the Carrier is not responsible by statute contract or otherwise the goods the Shipper and the Consignee shall contribute with the Carrier in general average to the payment of any sacrifices losses or expenses of a general average nature that may be made or incurred and shall pay salvage and special charges incurred in respect of the goods. If a salvaging ship is owned or operated by the Carrier salvage shall be paid for us fully and in the same manner as if such salvaging ship belonged to strangers. Cargo's contribution to general average shall be paid to the owners even when such average is the result of fault neglect or error of the Master pilot or crew. The shippers and Consignees expressly renounce any all codes statutes laws or regulations which might otherwise apply.

11.Whosoever the carrier or Master may deem it advisable or in any case received for shipment at an inland place or at where the ship will not call or where the goods are destined for part(s) or place(s) at which the ship will not call and particularly but not exclusive where the place of receipt for shipment and the port of loading or where the Port of Discharge from ship and Destination of the goods named in the face hereof are not the same the Carrier may without Notice forward the whole or any part of the shipment before or after loading at the original port of Shipment or any other place or places even though outside the scope of the voyage or the route or beyond the Port of Discharge or the destination of the goods by water by land or by any combination thereof whether operated by the Carrier or others and whether departed or arriving or scheduled to depart or arrive before or after the ship expected to be used for the transportation of the shipment. The Carrier may delay forwarding awaiting a vessel or conveyance in its own service or with which it has established connections. In all cases where the shipment in delivered to another carrier or to a Lighter Port Authority, Warehouseman or other Bailee for trans-shipment the liability of the Carrier shall absolutely cease when the goods are out of its exclusive possessions and the responsibility of this Carrier during any such period shall be that of an agent of the Shipper and/or Consignee and this Carrier shall be without any other responsibility whatsoever.

The carriage by any trans-shipping or on-carrier and all trans-shipment or forwarding shall be subject to all be subject to all the terms whatsoever in the regular form of bill of lading consignment note contract or other shipping document used at the time by such carrier whether issued for the container(s) and/or goods or not and even though such terms and conditions may be less favorable to the Shipper or consignee than the terms and conditions of this bill of lading and may contain more stringent requirements as to notice of Claim or commencement of suit and may exempt the on-carrier from the place where the goods are received for shipment to the Port of Lading or for on-carriage from the Port of Discharge from ship to destination over the rate prevailing at the time of the engagement evidenced by this bill of lading which letter rate has been used in computing the freight charges on this shipment shall be a charge and lien upon the goods.

12.The carrier shall not be required to separate or deliver goods in accordance with brand marks numbers size or types of packages as stated by the Shipper in his particulars (Part II hereof) but only deliver total number of containers, packages units shown in Carrier's description (Part I hereof) Carrier shall not be liable for mysterious disappearance or theft of goods unless shown to be due to Carrier negligence and to have occurred while goods were in Carrier's sole custody and control Carrier shall not be liable for any consequential or special damages and shall have the option of replacing lost goods or repairing damaged goods.

13.The Shipper, Consignee or cargo owner shall be liable for indemnify the Carrier and vessel and hold them individually and severally harmless against and the Carrier shall have a lien on the goods for all expenses for cooping, repairing fumigating repacking or reconditioning the goods all expenses for repairing containers damaged while in the possession of shipper or consignee and demurrage on containers, or Shipper's or Consignee's failure to supply information or otherwise comply with all laws and regulations in connection with the goods or

from any other act or omission of the Shipper or Consignee. The Carrier's lien shall survive delivery and may be enforced by private or public sale and without notice.

14. Since freight is calculated on the basis of particulars furnished by the Shipper, the Carrier may at any time inspect the contents of container(s) and examine the contents of the packages weight measure and value the goods. In case Shipper's particulars are found to be erroneous additional freight is payable the Shipper, Consignee and goods shall be liable for all expense incurred for examining, weighing, measuring and valuing the goods. Full freight to destination shall be considered completely earned or shipment whether the freight be started or intended to be prepaid or to be collected at destination and the Carrier shall be entitled to all freight and charges due hereunder whether actually paid or not and to receive and retain them irrevocably under all circumstances whatsoever vessel and/or goods lost or not lost or the voyage broken up or abandoned. All unpaid charges shall be paid in full and without any offset counterclaim or deduction in the currency of the United States or at Carrier's option its equivalent in foreign currency. The said Carrier shall have a lien on the goods which lien shall survive delivery for all freight and charges due under this bill of lading and under any contract preliminary hereto including dead freight and demurrage and for the cost of receiving such freight and for the cost of receiving such freight and charges and may enforce this lien by public or private sale and without notice. The Shipper Consignee and owner of the goods shall be jointly and severally liable to the Carrier for payment of all freight and charges and the performance of the obligation of each of them hereunder.

15. Neither this Carrier or any corporation owned by subsidiary to or associated or affiliated with the Carrier shall be liable to answer for or make good any loss or damage to goods occurring at any time and even though before loading on or after discharge from the vessel. By reason or by means of any fire whatsoever unless such fire shall be caused by its design or neglect.

16.In case of any loss damage to or in connection with goods exceeding in actual value the equivalent of \$500 lawful money of the United States per package or in case of goods not shipped in package per shipping unit the value of the goods shall be deemed to be \$500 per package of per shipping unit. The Carrier's liability if any shall be determined on the basis of a value of \$500 per package or shipping unit shall have been declared in writing by the Shipper upon delivery to the Carrier and inserted in this bill of lading and extra charge paid. In such case if the actual value of the goods per package or per shipping unit shall exceed such declared value the value shall nevertheless be deemed to be declared value and the Carrier's liability if any shall not exceed the declared value and any partial loss or damage shall be adjusted pro rata on the basis of such declared value. The words "shipping unit" shall mean each physical unit or piece of cargo not shipped in a package including articles or things of any description whatsoever except goods shipped in bulk and irrespective of the weight or measurement unit employed in calculating freight charges.

16.The Carrier and the vessel shall be discharged from liability in respect of loss damage mis delivery or in respect of any other breach of this contract whether occurring before loading on board or after discharge unless suit is brought within one year after delivery of the shipment or the date when the shipment or the date when the shipment or the date when the shipment should have been delivered. Suit shall not be deemed brought unless jurisdiction shall have been obtained from Carrier and/or the vessel by service of process or by an agreement to appear. The shipper, Consignee holder hereof or owner of the goods and their assignees subrogees or representatives shall file any and all claims directly with the Carrier and/or their party responsible for any loss damage injury, expense or delay it being specifically agreed that this Carrier shall not be responsible for any loss damage, injury, expense or delay not occurring on its own ocean route not while the goods are not in its actual custody and control. Upon written request the Carrier will furnish Shipper, Consignee holder hereof and/or owner of the goods with original bills of lading receipts consignment notes or other documents being hold for their benefit which may be required to file claim against any other carriers or parties

17.Any bookings freight engagements or other agreements relating to the shipment previously made are superseded by the bill of lading and by Carrier's freight Tariff Rules and Regulations which shall be deemed incorporated herein as if set forth at length. The Carrier's Freight Tariff Rules and Regulations are filled with the Marine Commission, Washington D.C. and are also available at any of the Carrier's offices.

18.Nothing in this bill of lading shall operate to deprive the Carrier of any statutory protection or exemption from or limitation of liability contained in the laws of the United States or in the laws of any other country which may be applicable. The bill of lading shall be construed according to the terms of the United States and the shipper, consignee and holder hereof agree that any suits against the Carrier shall be bought in the Federal Courts of the United States in de City of New York. The terms of this bill of lading shall be separable and if any part of term hereof shall be held invalid such holding shall not effect the validity of enforceability of any other term hereof

ATTACHMENTS B

TO

EXHIBIT 2

DECLARATION: LINDA SIEVAL

(CURRENT SHIPMENT FROM SPAIN)

OCEAN BILL OF LADING

SHIPPER EXPORTER

ESPAÑA E HIJOS, S.A.
CTRA. TORRIJOS - PUEBLA DE MONTALBAN KM 9,1
45517 ESCALONILLA - TOLEDO - SPAIN

Bill of Lading No.

4881155A

Container No.

EXPORT REFERENCES

CONSIGNEE

ROGELIO RODRIGUEZ GUARDADO
144 MILLER ROAD
CHESTER HILL NSW 2162
AUSTRALIA

FORWARDING AGENT - REFERENCES

PIER

NOTIFY PARTY

ROGELIO RODRIGUEZ GUARDADO
144 MILLER ROAD
CHESTER HILL NSW 2162
AUSTRALIA

PRE CARRIAGE BY (Domestic Routing / Export Instructions)

PLACE OF RECEIPT (Point and Country of Origin)

PLACE OF DELIVERY (Onward Inland Routing)

OCEAN VESSEL (Exporting Carrier)

PORT OF LOADING

MSC DEILA / FJ852E

VALENCIA

PORT OF DISCHARGE

FOR TRANSSHIPMENT TO

SYDNEY AUSTRALIA

PARTICULARS FURNISHED BY SHIPPER

MARKS AND NUMBERS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	MEASUREMENT
1X20' REF CRSU5008037 SEAL EU161679778 LCL/FCL	720 CARTONS	STC SPANISH HAM NET WEIGHT 7277,42 KGS TRANSPORT TEMP + 4°C SHIPPED ON BOARD FREIGHT PREPAID	7868 KGS	

THIS SHIPMENT IS PART OF A CONSOLIDATED
CONTAINER FOR DELIVERY APPLY TO:

VISA GLOBAL LOGISTICS PTY LTD

BUILDING 1, 1 COAL PIER ROAD

2019 BANKSMEDOW, NSW

IN CONNECTION WITH FREIGHT, SEE CLAUSE
15 and 3 OF THIS BILL OF LADING
~~IMPORT CUSTOMER SERVICE~~

IN ACCEPTING THIS BILL OF LADING, the Shipper, Consignee, Holder hereof, and Owner of the goods, agree to be bound by all of its stipulations, exceptions and conditions, whether written, printed or stamped on the front or back hereof, as well as the provisions of the above Carrier's published Tariff rules and Regulation, as if they were all signed by such Shipper, Consignee, Holder or Owner, and it is further agreed that Containers may be stowed on deck, as per Clause 7.

IN WITNESS WHEREOF, the Carrier or its Agents has affirmed to ISSUE 3
bills of lading, all of this tenor and date, ONE of wick being accomplished, the others to stand void.

LOGFRET
(as carrier)

Z.I. du Coudray - 2 rue Copernic - 93605 AULNAY-SOUS-BOIS cedex - FRANCE

Tél.: (1) 49 39 68 40/44 - Fax: (1) 49 39 68 48

BY _____
DATED AT MADRID ..01/2019
4881155A

BILL OF LADING

TERMS OF BILL OF LADING CONTINUED ON REVERSE SIDE

ATTACHMENTS C

TO

EXHIBIT 2

DECLARATION: LINDA SIEVAL

(CURRENT SHIPMENT FROM BELGIUM)

SHIPPER EXPORTER P.V.S. VELDSTRAAT 99 3500 HASSELT BELGIUM		Bill of Lading No. 70ME820080	Container No.
		EXPORT REFERENCES DIRECT IMPORTS	
CONSIGNEE DIRECT IMPORTS (NZ) LTD 203 NELSON STREET SOUTH NZ 4122 HASTINGS		FORWARDING AGENT - REFERENCES	
		PIER SD/CY	
NOTIFY PARTY SAME AS CONSIGNEE		PRE CARRIAGE BY (Domestic Routing / Export Instructions)	
PLACE OF RECEIPT (Point and Country of Origin) HASSELT, B		PLACE OF DELIVERY (Onward Inland Routing)	
OCEAN VESSEL (Exporting Carrier) MONACO MAERSK	PORT OF LOADING ANTWERPEN, B		
PORT OF DISCHARGE NAPIER, NZ	FOR TRANSSHIPMENT TO		

PARTICULARS FURNISHED BY SHIPPER

MARKS AND NUMBERS	NO. OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	MEASUREMENT
MRKU7617111 S/ 005921		1 X 20 DV CONTAINER STC 127 CARTONS SOUND MATERIAL	1045.39 KG	
FCA STEVOORT, B		0/ZERO EXPRESS BILL OF LADING FREIGHT COLLECT FCL/FCL SLAC SHIPPED ON BOARD 29.01.2018		

THIS SHIPMENT IS PART OF CONSOLIDATED
CONTAINER FOR DELIVERY APPLY TO :

VISA Global Logistics Ltd - 5 Southpark Place Penrose Auckland
 PO Box 90-761 Victoria Street West Auckland 1142
 P +64 9 377 7995 | F +64 9 377 7987

IN CONNECTION WITH FREIGHT, SEE CLAUSE
15 and 3 OF THIS BILL OF LADING

	rate	per		
TOTAL CHARGES				

IN ACCEPTING THIS BILL OF LADING, the Shipper, Consignee, Holder hereof, and Owner of the goods, agree to be bound by all of its stipulations, exceptions and conditions, whether written, printed or stamped on the front or back hereof, as well as the provisions of the above Carrier's published Tariff rules and Regulation, as if they were all signed by such Shipper, Consignee, Holder or Owner, and it is further agreed that Containers may be stowed on deck, as per Clause 7.
 IN WITNESS WHEREOF, the Carrier or its Agents has affirmed to ISSUE bills of lading, all of this tenor and date, ONE of which being accomplished, the others to stand void.



Z.I. du Coudray - 2, rue Copernic - 93605 AULNAY-SOUS-BOIS cedex - FRANCE
 Tél. : (1) 49 39 68 40/44 - Fax : (1) 49 39 68 48

BY _____

DATED AT ANTWERPEN 29.01.2018
 70ME820080

BILL OF LADING FOR THE CARRIER LOGFRET
 CARGO LINE

TERMS OF BILL OF LADING CONTINUED ON REVERSE SIDE

EXHIBIT 3

DUTCH SHIPPER E-MAIL

Rodriguez, Carlos

Subject: FW: Logfret BL
Attachments: VO16-02628.pdf; HBL 1ME600056.pdf

From: Inge Egas | Hans Boodt Mannequins [mailto:Inge@hansboodt.com]
Sent: Friday, February 22, 2019 11:03 AM
To: Linda Sieval | VISA Global Logistics <linda.sieval@visaglobal.nl>
Subject: Logfret BL

Dear Linda,

As discussed over the phone, attached is an example of the bl as we received the for export shipments from NL from Logfret.

One is to South Africa and the other one to Toronto. Unfortunately we don't do so many large exports from NL to outside Europe. Usually only small orders per courier.

Please note that we always received the bl's from an employee who is still active within the Logfret organization.

Should you or anyone have additional questions, please don't hesitate to contact us.

Kind regards,
Inge Egas

Inge Egas
Transport Coordinator

**Please note that all Tuesdays, Wednesdays and Thursdays, I have the afternoon off.
On those days my email will be read with delay from 12.30 o'clock local time.**

HANS BOODT.
M A N N E Q U I N S

Merwedeweg 6 | 3336 LG Zwijndrecht | The Netherlands

t: +31 (0)10 316 3200
d: +31 (0)10 316 3216
m: +31 (0)6 24598109
e: inge@hansboodt.com



Visit our [website] www.hansboodtmannequins.com
Read our newest magazine [here]



EXHIBIT 4

**LOGFRET, INC. RULE 8
BILL OF LADING TERMS
AND CONDITIONS**

Rule Detail

Organization: LOGFRET INC.(007636)
 Tariff: LOGFRET INC. - IMPORT/EXPORT FREIGHT RATE TARIFF FMC-002(007636-002)
 Rule: BILL(S) OF LADING(8)

Filing Information:

Filed: 25Feb2008
 Effective: 26Feb2008
 Expires:
 Thru:

Amendment Type: IR
 Status: Filed
 Special Case:

1. (a) Except as otherwise provided herein, this Bill of Lading shall have effect subject to the provisions of the Carriage of Goods by Sea Act of the United States of America, approved April 16, 1936, which shall not be deemed a surrender by the Carrier of any of its rights or immunities or an increase of any of its responsibilities or liabilities under said Act. The provisions stated in said Act (except as otherwise specifically provided herein) shall govern before loading on and after discharge from the vessel and throughout the entire time the Goods are in the custody of the Carrier. If this Bill of Lading is issued or delivered in a locality where there is in force a compulsorily applicable Carriage of Goods by Sea Act, Ordinance or Statute of a nature similar to the International Convention for the Unification of Certain Rules Relating to Bills of Lading dated at Brussels, August 25, 1924, it shall be subject to the provisions of said Act, Ordinance or Statute and rules thereto annexed.
- (b) The Carrier shall be entitled to the full benefit of, and right to, all limitations of or exceptions from, liability authorized by any provisions of Sections 4281 to 4288, inclusive, of the Revised Statutes of the United States and amendments thereto and of any other provisions of the laws of the United States or of any other country whose laws shall apply.
2. In this Bill of Lading:
 - (a) "Carrier" means and includes Carrier named on the face side hereof, the vessel, her owner, Master, operator, demise character, and if bound hereby, the time charterer, and any substitute Carrier whether the owner, operator, charterer or Master shall be acting as carrier or bailee.
 - (b) "Vessel" means and includes the ocean vessel on

which the Goods are shipped, named on the face hereof, or any substitute vessel, also any feedership, ferry, barge, lighter or any other watercraft used by the Carrier in the performance of this contract.

- (c) "Merchant" means and includes the shipper, the consignee, the receiver, the holder of this Bill of Lading, the owner of the Goods or person entitled to the possession of the Goods and the servants or agents of any of these.
 - (d) "Charges" means and includes freight and all expenses and money obligations incurred and payable by the Merchant.
 - (e) "Goods" means and includes the cargo received from the shipper and described on the face side hereof and any Container not supplied by or on behalf of the Carrier.
 - (f) "Container" means and includes any container, van, trailer, transportable tank, flat, pallet or any similar article of transport.
 - (g) "Person" means and includes an individual, corporation, partnership or other entity as the case may be.
 - (h) "Participating Carrier" means and shall include any other water, land or air carrier performing any stage of the Combined Transport.
3. It is understood and agreed that other than the said Carrier, no person whatsoever (including the Master, officers and crew of the vessel, all servants, agents, employees, representatives, and all stevedores, terminal operators, crane operators, watchmen, carpenters, ship cleaners, surveyors and other independent contractors whatsoever) is or shall be deemed to be liable with respect to the goods as carrier, bailee or otherwise howsoever, in contract or in tort. If, however, it should be adjudged that any other than said carrier is under any responsibility with respect to the Goods, all limitations of and exonerations from liability provided by law or by the terms hereof shall be available to such other persons as herein described. In contracting for the foregoing exemptions, limitations and exonerations from liability, the Carrier is acting as agent and trustee for and on behalf of all persons described above, all of whom shall to this extent be deemed to be a party to this contract evidenced by this Bill of Lading, it being always understood that the said beneficiaries are not entitled to any greater or further exemptions, limitations or exonerations from liability, than those that the Carrier has under this Bill of Lading in any given situation.
4. Subject to all rights, privileges and limitations of and exonerations from liability granted to the ocean carrier under this Bill of Lading or by law, any liability by the respective participating carriers for loss or damage to the Goods or packages carried hereunder shall be governed by the following:
- (a) If loss or damage occurs while the goods or packages are in the custody of the ocean

- carrier, only the ocean carrier shall be responsible therefore, and any liability of the ocean carrier shall be determined by the terms and conditions of this Bill of Lading and any law compulsorily applicable.
- (b) If loss or damage occurs while the Goods or packages are in the custody of a participating domestic or foreign Carrier, only the participating domestic or foreign Carrier(s) shall be responsible therefore, and any liability of such participating domestic or foreign Carrier(s) shall be determined, in respective order, by the terms, conditions and provisions of the applicable participating domestic or foreign Carrier's Bill(s) of Lading, whether issued or not, tariff(s) and law compulsorily applicable in the circumstances.
 - (c) Notwithstanding subdivision (a) and (b) hereof, it is contemplated that the Goods or packages will from time to time be carried in through transportation that will include inland transportation within the United States by Railroad and sea carriage by one or more of the other Carriers above defined (When used on or endorsed on this Bill of Lading the words "on board" shall mean and include on board the original carrying vessel when the Goods or packages are being transported from the continental United States to a foreign port or place "on board" shall mean and include on board a rail car operated by the originating carrier and enroute by rail to the port of loading for loading on board the Carrier's or participating Carrier's vessel).
 - (d) If loss or damage occurs after receipt of the Goods or packages hereunder, and it cannot be determined from the records of the ocean Carrier or participating domestic or foreign Carrier(s) whether such damage or loss occurred during ocean, domestic or foreign carriage, it shall be conclusively presumed that the loss or damage occurred on board the vessel and while the Goods or packages were in the custody of the ocean Carrier.
 - (e) At all times when the Goods or packages are in the custody of the above-mentioned participating domestic or foreign Carriers, such Carriers shall be entitled to all the rights, defenses, exceptions from or limitations of liability and immunities of whatsoever nature referred to or incorporated herein applicable or granted to the Carrier as herein defined, to the full extent permitted to such domestic and foreign Carriers under this Bill(s) of Lading, tariffs and any other laws applicable or relating thereto, provided however, that nothing contained in this Bill of Lading shall be deemed a surrender by these domestic or foreign Carriers of any of their rights and immunities or an increase of any of their limitations of

and exonerations from liability under their said Bill(s) of Lading, tariffs or laws applicable or relating to said carriage.

- (f) In making any arrangements for transportation by participating domestic or foreign Carriers of the Goods or packages carried hereunder, either before or after ocean carriage, it is understood and agreed that the ocean Carrier acts solely as agent of the Merchant, without any other responsibility whatsoever, and it assumes no responsibility as Carrier for such domestic or foreign transportation.
 - (g) Notice of loss or damage and claim against the ocean Carrier, where applicable, shall be given to the ocean Carrier, and suit commenced as provided for in Clauses 30 and 31 hereof. Notice of loss or damage against the participating domestic or foreign Carrier(s), where applicable, shall be filed with the participating domestic or foreign Carrier(s) and suit commenced as provided for in the terms, conditions and provisions of said Carrier(s) Bill(s) of Lading or by law applicable thereto. It is understood by the Merchant that such terms, conditions and provisions, as they pertain to notice of, and claim for, loss or damage and commencement of suit, contain different requirements than those requirements pertaining to ocean Carriage as contained in Clauses 30 and 31 hereof.
5. The goods carried hereunder are subject to all the terms and provisions of the Carrier's applicable Tariff or Tariffs on file with the Federal Maritime Commission, Interstate Commerce Commission or any other regulatory body which governs a particular portion of this carriage, and the terms and provisions of the said Tariff or Tariffs are hereby incorporated herein as part of the Terms and Conditions of this Bill of Lading. Copies of the relevant provisions of the applicable Tariff or Tariffs are obtainable from the Carrier, Federal Maritime Commission, Interstate Commerce Commission or other regulatory body upon request. In the event of any conflict between the terms and provisions of such Tariff or Tariffs and the Terms and Conditions of this Bill of Lading, this Bill of Lading shall prevail.
 6. The Merchant warrants that in agreeing to the Terms and Conditions hereof, he is, or has authority of, the person owning and entitled to the possession of the Goods and this Bill of Lading.
 7. (a) The Carrier shall be entitled to sub-contract on any terms the whole or any part of the carriage, loading, unloading, storing, warehousing, handling and any and all duties whatsoever undertaken by the Carrier in relation to the Goods.
 - (b) As to through transportation, the Carrier undertakes to procure such services as necessary and shall have the right at its sole discretion to select any mode of land, sea or air transport and to arrange participation by other Carriers

to accomplish the combined transport from place of receipt to place of delivery. Whenever any stage of the combined transport is accomplished by any land or air Carrier or any other water Carrier, each such stage shall be controlled according to any law compulsorily applicable to such stage and according to the contracts, rules and tariffs of each participating Carrier, the same as if such contracts, rules and tariffs were fully set forth herein.

8. The Carrier shall be entitled but under no obligation to open any Container at anytime and to inspect the contents unless applicable law prohibits same. If it thereupon appears that the contents or any part thereof cannot safely or properly be carried or carried further, either at all or without incurring any additional expense or taking any measures in relation to the Container or its contents or any part thereof, the Carrier may abandon the transportation thereof and/or take any measures and/or incur any reasonable additional expense to carry or to continue the carriage or to store the same ashore or afloat under cover or in the open, at any place, which storage shall be deemed to constitute due delivery under this Bill of Lading. The Merchant shall indemnify the Carrier against any unreasonable additional expense so incurred.
9. Carrier may containerize any Goods or packages. Containers may be stowed on deck or under deck and when so stowed shall be deemed for all purposes to be stowed under deck, including for General Average and U.S. Carriage of Goods by Sea Act, 1936 and similar legislation.
10. Deck cargo (except goods carried in containers on deck) and live animals are received and carried solely at Merchant's risk (including accident or mortality of animals), and the Carrier shall not in any event be liable for any loss or damage thereto arising or resulting from any matters mentioned in Section 4, Sub-Section 2(a) to (p), inclusive, of the United States Carriage of Goods by Sea Act, or from any other cause whatsoever not due to the fault of the Carrier, any warranty of seaworthiness in the premises being hereby waived, and the burden of proving liability being in all respects upon the Merchant. Except as provided above, such shipments shall be deemed Goods and shall be subject to all terms and provisions of this Bill of Lading relating to Goods.
11. Special containers with heating or refrigeration units will not be furnished unless contracted for expressly in writing at time of booking and, when furnished, may entail an increased freight rate or charge. Shipper shall advise Carrier of desired temperature range when delivering Goods to Carrier, and Carrier shall exercise due diligence to maintain the temperature within a reasonable range while the containers are in its custody or control. The Carrier does not, however, accept any responsibility for the functioning of heated or refrigerated containers

not owned or leased by Carrier.

12. The scope of the voyage herein contracted for shall include usual or customary or advertised ports of call whether named in this contract or not, also ports in or out of the advertised, geographical or usual route or order, even though in proceeding thereto the vessel may sail beyond the port of discharge named herein or in a direction contrary thereto, or return to the original port, or depart from the direct or customary route and includes all canals, straits, and other waters. The vessel may call at any port for the purpose of the current, prior or subsequent voyages. The vessel may omit calling at any port whether scheduled or not, and may call at the same port more than once, may discharge the goods during the first or subsequent call at the port of discharge, may for matters occurring before or after loading, and either with or without the goods on board, and before or after proceeding towards the port of discharge, adjust compasses, drydock with or without cargo on board, stop for repairs, shift berths, make trial trips or tests, take fuel or stores, remain in port, lie on bottom, aground or at anchor, sail with or without pilots, tow and be towed, and save or attempt to save life or property, and all of the foregoing are included in the contract voyage. The vessel may carry contraband, explosives, munitions, warlike stores, hazardous cargo, and sail armed or unarmed, and with or without convoy.

The Carrier's sailing schedules are subject to change without notice, both as to the sailing date and date of arrival. If this is a Through Bill of Lading, no Carrier is bound to transport the shipment by any particular train, truck, aircraft, vessel or other means of conveyance, or in time for any particular market or otherwise. No Carrier shall be liable for delay and any Carrier shall have the right to forward the goods by substitute Carrier.

13. If at any time the performance of the contract evidenced by this Bill of Lading is or is likely to be affected by any hindrance, risk, delay, difficulty or disadvantage of whatsoever kind which cannot be avoided by the exercise of reasonable endeavours, the Carrier (whether or not the transport is commenced) may without notice to the Merchant treat the performance of this contract as terminated and place the Goods or any parts of them at the Merchant's disposal at any place or port which the Carrier may deem safe and convenient, whereupon the responsibility of the Carrier in respect of such Goods shall cease. The Carrier shall nevertheless be entitled to full freight and charges on Goods received for transportation and the Merchant shall pay any additional costs of carriage to and delivery and storage at such place or port.
14. If the Carrier makes a special agreement, whether by stamp hereon or otherwise, to deliver the Goods at a specified dock or place, it is mutually agreed

that such agreement shall be construed to mean that the Carrier is to make such delivery only if, in the sole judgment of the Carrier, the vessel can get to, lie at, and leave said dock or place, always safely afloat, and only if such dock or place is available for immediate receipt of the Goods and that otherwise the Goods shall be discharged as otherwise provided in this Bill of Lading, whereupon all responsibility of Carrier shall cease.

15. The port authorities are hereby authorized to grant a general order for discharging immediately upon arrival of the vessel and the Carrier, without giving notice either of arrival or discharge, may, immediately upon arrival of the vessel at the designated destination, discharge the goods continuously, Sundays and Holidays included at all such hours by day or by night as the Carrier may determine no matter what the state of the weather or custom of the port may be.

The Carrier shall not be liable in any respect whatsoever if heat or refrigeration or special cooling facilities shall not be furnished during loading or discharge or any part of the time that the Goods are upon the wharf, craft or other loading or discharging place.

Landing and delivery charges and pier dues shall be at the expense of the Goods unless included in the freight herein provided for. If the Goods are not taken away by the consignee by the expiration of the next working day after the Goods are at his disposal, the Goods may, at Carrier's option and subject to Carrier's lien, be sent to store or warehouse or be permitted to lie where landed, but always at the expense and risk of the Goods. The responsibilities of the Carrier in any capacity shall altogether cease and the Goods shall be considered to be delivered and at their own risk and expense in every respect when taken into the custody of Customs or other Authorities, or into that of any municipal or governmental concessionaire or depository.

The Carrier shall not be required to give any notification of disposition of the Goods, except as may be otherwise provided in this Bill of Lading.

16. At ports or places where, by local law, authorities, or custom, the Carrier is required to discharge cargo to lighters or other craft, or where it has been so agreed, or where wharves are not available which the ship can get to, lie at, or leave, always safely afloat, or where conditions prevailing at the time render discharge at a wharf dangerous, imprudent, or likely to delay the vessel, the Merchant, shall promptly furnish lighters or other craft to take delivery alongside the ship, at the risk and expense of the Goods. If the Merchant, fails to provide such lighters or other craft, Carrier, acting solely as agent for the Merchant, may engage such lighters or other craft at the risk and expense of the Goods. Discharge of the Goods

into such lighters or other craft shall constitute proper delivery and any further responsibility of Carrier with respect to the Goods shall thereupon terminate.

17. The carrier shall have liberty to comply with any order or directions or recommendations in connection with the transport under this contract of carriage given by any Government or Authority or anyone acting or purporting to act on behalf of such Government or Authority, or having, under the terms of the mortgage or insurance on the vessel or other transport, the right to give such orders, directions or recommendations. Discharge or delivery of the Goods in accordance with the said order or directions or recommendations shall be deemed a fulfillment of the contract. Any extra expense incurred in connection with the exercise of the Carrier's liberty under this clause shall be paid by the Merchant in addition to freight and charges.
18. Whenever the Carrier or Master may deem it advisable, or in any case where goods are destined for port(s) or place(s) at which the vessel or participating carriers will not call, the Carrier may, without notice, forward the whole or any part of the shipment, before or after loading at the original port of shipment, or any other place or places even though outside the scope of the voyage or the route to or beyond the port of discharge or the destination of the Goods, by water, by land or by air or by any combination thereof, whether operated by the Carrier or others and whether departing or arriving or scheduled to depart or arrive before or after the ship expected to be used for the transportation of the shipment. The Carrier may delay forwarding awaiting a vessel or conveyance in its own service or with which it has established connections. In all cases where the shipment is delivered to another Carrier or to a lighter, Port Authority, warehouseman or other bailee for transshipment, the liability of this Carrier shall absolutely cease when the Goods are out of its exclusive possession and shall not resume, until the Goods again come into its exclusive possession, and the responsibility of this Carrier during any such period shall be that of an agent of the Merchant and this Carrier shall be without any other responsibility whatsoever. The carriage by any transshipping or On-Carrier and all transshipment or forwarding shall be subject to all the terms whatsoever in the regular form of Bill of Lading, consignment note, contract or other shipping document used at the time by the Carrier performing such transshipment or forwarding.
19. In any situation whatsoever and wheresoever occurring and whether existing or anticipated before commencement of or during the combined transport, which in the judgement of the Carrier or the Master is likely to give rise to risk of capture, seizure, detention, damage, delay or disadvantage or loss to the Carrier or any part of the Goods, to make it unsafe, imprudent or unlawful for any reason to

receive, keep, load, or carry the goods, or commence or proceed on or continue the transport or to enter or discharge the goods or disembark passengers at the port of discharge, or the usual or agreed or intended place of discharge or delivery, or to give rise to delay or difficulty in proceeding by the usual or intended route, the Carrier or the Master may decline to receive, keep, load or carry the Goods or may devan container(s) contents or any part thereof and may require the Merchant to take delivery of the Goods at the place of receipt or any other point in the combined transport and upon failure to do so, may warehouse the Goods at the risk and expense of the Goods, or the vessel, whether or not proceeding towards or entering or attempting to enter a port of discharge, or reaching or attempting to reach a usual place of discharge therein or attempting to discharge the shipment, may discharge the Goods and/or devan the contents of any container(s) at another port, depot, lighter, craft, or other place, or may forward or transship them as provided in this Bill of Lading, or the Carrier or the Master may retain the Goods, vanned or unvanned, on board until the return of the vessel to the port of loading or to the port of discharge or until such time as the Carrier or the Master thinks advisable and discharge the Goods at any place whatsoever as herein provided. The Carrier or the Master is not required to give notice of such devanning or of discharge of the Goods or of the forwarding thereof as herein provided. When the Goods are discharged from the ship, as herein provided, such shall be at the risk and expense of the Goods. Such discharging shall constitute complete delivery and performance under this contract and the Carrier shall be free from any further responsibility, unless it be shown that any loss or damage to the Goods arose from Carrier's negligence in the discharge and delivery as herein provided, the burden of establishing such negligence being on the Merchant. For any service rendered to the Goods as herein above provided or for any delay or expense to the vessel caused as a result thereof, the Carrier shall be entitled to a reasonable extra compensation, and shall have a lien on the goods for such carriage. Notice of disposition of the Goods shall be mailed to shipper or consignee named in this Bill of Lading. Goods shut out from the vessel named herein for any cause may be forwarded on a subsequent vessel of this Line or, at Carrier's option, on a vessel of another Line or by other mode of transportation.

20. Notwithstanding the foregoing, the Carrier shall neither be liable therefore, nor concluded as to, the correctness of any such marks, descriptions or representation.

When any cargo unit owned or leased by Carrier is packed or loaded by shipper or its agent, or discharged by consignee or its agent, shipper, consignee, receiver, holder of this Bill of Lading,

owners of the Goods and person entitled to the possession of the Goods shall be and remain liable, jointly and severally, for any loss or damage to the cargo unit during such loading or discharge, howsoever occurring, until the cargo unit is returned to Carrier's custody and, at tariff rates, for any delay beyond the time allowed for such loading or discharge, and for any loss, damage or expense incurred by Carrier as a result of the failure to return the cargo unit to the Carrier in the same sound condition and state of cleanliness as when received by shipper. Such loss, damage, expense or delay shall constitute a lien on the Goods.

Where a cargo unit is to be unpacked or unloaded by consignee or its agent, consignee or its agent shall promptly unpack or unload such cargo unit and take delivery of its contents, irrespective of whether the Goods are damaged or not. Carrier shall not be liable for loss or damage caused to the Goods by or during such unpacking or unloading.

21. When containers, vans, trailers, transportable tanks, flats, palletized units, and all other packages (all hereinafter referred to generically as "cargo units") are not packed or loaded by Carrier, such cargo units shall be deemed shipped as "Shipper's weight, load and count". Carrier has no reasonable means of checking the quantity, weight, condition or existence of the contents thereof, does not represent the quantity, weight, condition or existence of such contents, as furnished by the shipper and inserted in this Bill of Lading, to be accurate, and shall not be liable for nonreceipt or misdescription of such contents. Carrier shall have no responsibility or liability whatsoever therefore or for the packing, loading, securing and/or stowage of contents of such cargo units, or for loss or damage caused thereby or resulting therefrom, or for the physical suitability or structural adequacy of such cargo units properly to contain their contents.

The Merchant, whether principal or agent, by packing or loading the cargo unit and/or by allowing the cargo unit to be so packed or loaded, represents, guarantees and warrants: (a) that the Goods are properly described, marked and safely and securely packed in their respective cargo units; that such cargo units are physically suitable, sound and structurally adequate properly to contain and support the Goods during handling and on the transport; and that the cargo units may be handled in the ordinary course without damage to themselves or to their contents, or to the vessel or conveyance or to their other cargo, or property, or persons; (b) that all particulars with regard to the cargo units and their contents, and the weight of each said cargo unit, are in all respects correct, and

(c) that they have ascertained and fully disclosed in writing to the Carrier and all participating Carriers on or prior to shipments, and condition, ingredient or characteristic of the Goods which might indicate that they are inflammable, explosive, corrosive, radioactive, noxious, hazardous or dangerous in nature, or which might cause damage, injury or detriment to the Goods, or to the vessel, conveyance or other cargo or to property or persons that they have complied fully with all statutes, ordinances and regulations of the Department of Transportation of the United States of America and all other regulatory bodies with respect to labeling, packaging and preparation for shipment of all such Goods.

The shipper, consignee, receiver, holder of this Bill of Lading, owner of the Goods and persons entitled to the possession of the Goods jointly and severally agree fully to protect and indemnify Carrier, and to hold it harmless in respect of any injury or death of any person, or loss or damage to cargo or cargo unit or any other property, or to the vessel or conveyance or expense or fine arising out of or in anyway connected with breach of any of the foregoing representations or warranties, howsoever occurring, even without fault of shipper, consignee and/or owner of the Goods, and even though such injury, death, loss or damage is caused in whole or in part by the fault of the Carrier or unseaworthiness.

22. The Merchant and the Goods themselves shall be liable for and shall indemnify the Carrier, and the Carrier shall have a lien on the Goods for all expenses of mending, repairing, fumigating, repacking, coopering, baling, reconditioning of the Goods and gathering of loose contents of packages; also for expenses for repairing containers damaged while in the possession of the Merchant for demurrage on containers and any payment, expense, fine, dues, duty, tax, impost, loss, damage or detention sustained or incurred by or levied upon the Carrier, vessel or conveyance in connection with the Goods, howsoever caused, including any action or requirement of any government or governmental authority or person purporting to act under the authority thereof, seizure under legal process or attempted seizure, incorrect or insufficient marking, numbering or addressing of containers, packages or description of the contents, failure of the Merchant to procure consular, Board of Health or other certificates to accompany the Goods or to comply with laws or regulations or any kind imposed with respect to the Goods by the authorities at any port or place or any act or omission of the Merchant. The Carrier's lien shall survive delivery and may be enforced by private or public sale and without notice.
23. Freight shall be payable, at Carrier's option, on actual gross intake weight or measurement or on

actual gross discharge weight or measurement or on a value or other basis. Freight may be calculated on the basis of the particulars of the Goods furnished by the shipper herein, but the Carrier may, as previously stated herein, at any time open the packages or containers and examine, weigh, measure and value the Goods (unless applicable law prohibits same). In case shipper's particulars are found to be erroneous and additional freight payable, the Merchant and the Goods shall be liable for any expense incurred for examining, weighing, measuring and valuing the Goods. Full freight shall be paid on damaged or unsound goods. Full freight hereunder to place of delivery named herein and advance charges (including on-Carrier's) shall be considered completely earned on receipt of the Goods by the Carrier, whether the freight be stated or intended to be prepaid or to be collected at destination; and the Carrier shall be entitled to all freight and charges, extra compensation, demurrage, detention, General Average, claims and any other payments made and liability incurred with respect to the Goods, whether actually paid or not, and to receive and retain them irrevocably under all circumstances whatsoever, vessel, conveyance and/or cargo lost, damaged or otherwise, or the combined transport changed, frustrated or abandoned. In case of forced abandonment or interruption of the combined transport for any cause, any forwarding of the goods or any part thereof shall be at the risk and expense of the Goods. All unpaid charges shall be paid in full, without any offset, counterclaim or deduction in the currency of the place of receipt or at Carrier's option, in the currency of the place of delivery at the demand rate of New York exchange as quoted on day of arrival of the Goods at the place of delivery.

The Merchant shall be jointly and severally liable to the Carrier for the payment of all freight charges and the amounts due to the Carrier, and for any failure of either or both to perform his or their obligations under the provisions of the Bill of Lading, and they shall indemnify the Carrier against, and hold it harmless from, all liability, loss, damage and expense which the Carrier may sustain or incur arising or resulting from any such failure or performance by the Merchant. Any person, firm or corporation engaged by any party to perform forwarding services with respect to the cargo shall be considered the exclusive agent of the Merchant for all purposes and any payment of freight to such person, firm or corporation shall not be considered payment to the Carrier in any event. Failure of such person, firm or corporation to pay any part of the freight to the carrier shall be considered a default by the Merchant in the payment of the freight.

The Carrier shall have a lien on the Goods and any documents relating thereto, which shall survive delivery, for all freight charges and damages of any kind whatsoever, and for the costs of recovering

same, including expenses incurred in preserving this lien, and may enforce this lien by public or private sale and without notice. The shipper, consignee, receiver, holder of this Bill of Lading, owner of the Goods and person entitled to the possession of the Goods shall be jointly and severally liable to the Carrier for the payment of all freight, charges and damages as aforesaid under and for the performance of this obligation of each of them hereunder.

24. Carrier shall not be liable for any consequential or special damages and shall have the option of replacing lost Goods or repairing damaged Goods.
25. The weight or quantity of any bulk cargo inserted in this Bill of Lading is the weight or quantity as ascertained by a third party other than the Carrier, and Carrier makes no representation with regard to the accuracy thereof. This Bill of Lading shall not be deemed evidence against the Carrier of receipt of goods of the weight or quantity so inserted in the Bill of Lading.
26. Neither the Carrier nor any corporation owned by, subsidiary to or associated or affiliated with the Carrier shall be liable to answer for or make good any loss or damage to the Goods occurring at any time and even though before loading on or after discharge from the ship, by reason or by means of any fire whatsoever, unless such fire shall be caused by its design or neglect, or by its actual fault or privity. In any case where this exemption is not permitted by law, Carriers shall not be liable for loss or damage by fire unless shown to have been caused by Carrier's negligence.
27. If the vessel comes into collision with another vessel as a result of the fault or negligence of the other vessel and any act, neglect or default of the Carrier, Master, mariner, pilot or the servants of the Carrier in the navigation or in the management of the vessel, the Merchant will indemnify the carrier against all loss or liability to the other or non-carrying vessel or her owners insofar as such loss or liability represents loss of, or damage to, or any claim whatsoever of the Merchant, paid or payable by the other or non-carrying vessel or her owners to the Merchant and set-off, recouped or recovered by the other or non-carrying vessel or her owners as part of their claim against the carrying vessel or Carrier.

The foregoing provisions shall also apply where the owners, operators or those in charge of any vessel or vessels or objects other than, or in addition to, the colliding vessels or objects are at fault in respect of a collision, contact, stranding or other accident.

This provision is to remain in effect in other jurisdictions even if unenforceable in the Courts

of the United States of America.

28. General average shall be adjusted, stated and settled according to York-Antwerp Rules 1974, except Rule XII thereof, at such port or place as may be selected by the Carrier and as to matters not provided for by these Rules, according to the laws and usages of New York.

In such adjustment, disbursements in foreign currencies shall be exchanged into United States money at the rate prevailing on the dates made and allowances for damage to cargo claimed in foreign currency shall be converted at the rate prevailing on the last day of discharge at the port or place of final discharge of such damaged cargo from the ship. Average agreement or bond and such additional security as may be required by the Carrier must be furnished before delivery of the goods. Such cash deposit as the Carrier or his agents may deem sufficient as additional security for the contribution of the goods and for any salvage and special charges thereon shall, if required, be made by the Goods, shippers, consignees or owners of the goods to the Carrier before delivery of the Goods. Notwithstanding anything hereinbefore contained, such shall at the option of the Carrier be payable in United States currency and be remitted to the adjuster pending settlement of the General Average and refunds of credit balances, if any, shall be paid in United States currency. In addition to the circumstances dealt with in the 1974 York-Antwerp Rules, it is agreed that if the Carrier has used due diligence in the stowage of cargo and if the safe prosecution of the voyage is thereafter imperiled in consequence of the disturbance of stowage, the costs of handling, discharge, reloading and restowing cargo shall be allowed in General Average, even though the handling of cargo is not necessary for the purpose of effecting repairs to the vessel.

In the event of accident, danger or disaster, before or after commencement of the voyage resulting from any cause whatsoever, whether due to negligence or not, for which, or for the consequence of which, the Carrier is not responsible by statute, contract or otherwise, the Goods, the shipper, consignee, receiver, holder of the Bill of Lading, owner of the Goods and person entitled to the possession of the Goods, jointly and severally, shall contribute with the Carrier in General Average to the payment of any sacrifices, losses or expenses of a General Average nature that may be made or incurred and shall pay salvage and special charges incurred in respect of the Goods. If a salving ship is owned or operated by the Carrier, salvage shall be paid for as fully and in the same manner as if such salving ship or ships were owned or operated by strangers. Cargo's contribution in General Average shall be paid to the shipowner even when such average is the result of fault, neglect or error of the Master, pilot, officers or crew. The Merchant expressly renounces

any and all codes, statutes, laws or regulations which might otherwise apply.

29. In case of any loss or damage to or in connection with Goods exceeding in actual value the equivalent of \$500.00 lawful money of the United States, per package, or in case of Goods not shipped in packages, per shipping unit, the value of the Goods shall be deemed to be \$500.00 per package or per shipping unit. The Carrier's liability, if any, shall be determined on the basis of a value or \$500.00 per package or per shipping unit or pro rata in case of partial loss or damage, unless the nature of the Goods and a valuation higher than \$500.00 per package or per shipping unit shall have been declared by the shipper before shipment and inserted in this Bill of Lading, and extra freight paid if required. In such case, if the actual value of the Goods per package or per shipping unit shall exceed such declared value, the value shall nevertheless be deemed to be declared value and the Carrier's liability, if any, shall not exceed the declared value and any partial loss or damage shall be adjusted pro rata on the basis of such declared value. The words "shipping unit" shall mean each physical unit or piece of cargo not shipped in a package, including articles or things of any description whatsoever, except goods shipped in bulk, and irrespective of the weight or measurement unit employed in calculating freight charges.

Where containers, vans, trailers, transportable tanks, flats, palletized units and other such packages are not packed by the Carrier, each individual such container, van, trailer, transportable tank, palletized unit and other such package including in each instance its contents, shall be deemed a single package and Carrier's liability limited to \$500.00 with respect to each such package.

30. As to loss or damage to the Goods or packages occurring or presumed to have occurred during ocean voyage, unless notice of loss of or damage and the general nature of it be given in writing to the Carrier or its agent at the port of delivery before or at the time of the removal of the Goods or packages into the custody of the person entitled to delivery thereof under this Bill of Lading or, if the loss or damage be not apparent, within three consecutive days after delivery at the port of discharge, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods or packages as described in this Bill of Lading.
31. As to loss or damage to the Goods or packages occurring or presumed to have occurred during ocean carriage, the Carrier and the vessel shall be discharged from all liability in respect of loss, damage, misdelivery, delay or in respect of any other breach of this contract and any claim whatsoever with respect to the Goods or packages,

unless suit is brought within one year after delivery of the Goods or package or the date when the Goods or package should have been delivered. Suit shall not be deemed brought unless jurisdiction shall have been obtained over the Carrier and/or the vessel by service of process or by an agreement to appear.

32. Gold, silver, specie, bullion or other valuables, including those named or described in Sec. 4281 of the Revised Statutes of the United States, will not be received by the Carrier unless their true character and value are disclosed to the Carrier and a special written agreement therefore has been made in advance, and will not, in any case, be loaded or landed by the Carrier. No such valuables shall be considered received by or delivered to the Carrier until brought aboard the ship by the shipper and put in the actual possession of and written receipt therefor is given by the Master or other officer in charge. Such valuables will only be delivered by the Carrier aboard the ship on presentation of bills of lading properly endorsed and upon such delivery on board the Carrier's responsibility shall cease. If delivery is not so taken promptly after the ship's arrival at the port of discharge, the goods may be retained aboard or landed or carried on, solely at the risk and expense of the goods.
33. It is agreed that superficial rust, oxidation or any like condition due to moisture, is not a condition of damage but is inherent to the nature of the cargo; and acknowledgement of receipt of the Goods in apparent good order and condition is not a representation that such conditions of rust, oxidation and the like did not exist on receipt.
34. Nothing in this Bill of Lading shall operate to deprive the Carrier of any statutory protection or exemption from, or limitation of, liability, contained in the laws of the United States, or in the laws of any other country which may be applicable. This Bill of Lading shall be construed according to the laws of the United States and the Merchant agrees that any suits against the Carrier shall be brought in the Federal Courts of the United States. The terms of this Bill of Lading shall be separable, and if any part or term hereof shall be held invalid, such holding shall not affect the validity or enforceability of any other part or term hereof.

ALL INFORMATION CONTAINED WITHIN THIS TARIFF IS TRUE AND ACCURATE AND
NO UNLAWFUL ALTERATIONS WILL BE PERMITTED.

For Explanation of Abbreviations and Reference Marks, see rule 28 and 29

For Tariff Access Information see rule 30.

For Security Bonding see rule 24.

* = Future Revision



= Required Field

This page was generated by FMCRAES on 06Mar2019 at 12:10 PM, EST.